To,
KOGANTI SRINIVASA RAO

Welcome Letter

1. We, PayU Finance India Private Limited **(PayU Finance)**, refer to your application for availing the credit facility in the nature of personal loan **(Facility)** which was submitted by you on the digital lending platform currently named as PaySense and which is owned and operated by PaySense Services India Private Limited being the Service Provider/ digital lending partner/ recovery agent of PayU Finance and compliment you on choosing PayU Finance as your preferred borrowing partner.

2. PayU Finance is delighted to advise you of the Facility that PayU Finance will offer on the terms and conditions of the Facility Documents where the expression **Facility Documents** means the agreement between you and PayU Finance comprising of the following documents:

   A. this welcome letter

   B. the application form, filled with necessary particulars and duly filled and accepted by you **(Application Form);**

   C. the credit facility agreement governing the terms and conditions of the Facility **(Facility Agreement)**, duly accepted and executed by you;

   D. the most important terms and conditions of the Facility along with the Charge-Sheet **(Most Important Terms and Conditions)**, duly accepted and executed by you;

   E. general terms and conditions applicable to the provision of the Facility **(General Terms and Conditions)**, duly accepted and executed by you;

   F. the key facts statement **(Key Facts Statement)**, setting out the key terms of the Facility, duly accepted by you; and

   G. any other document which PayU Finance may from time to time require from you to be completed, executed and/or delivered in connection with the Facility and which is designated as a **Facility Document** by PayU Finance, each as amended, supplemented, restated or substituted from time to time.

   (the documents referred in (B) to (F) above are enclosed with this welcome letter).

3. You acknowledge and understand that in order to avail the Facility, you are required to register with PayU Finance. For this purpose, you will be required to submit certain information and documents that may include, without limitation, KYC documents, tax and other registration certificates, financial information and such further information or documents, in a form and manner acceptable to PayU Finance, as PayU Finance may request from time to time.

4. By accepting and executing the Facility Documents, you have irrevocably and unconditionally acknowledged that you : (a) understand English, (b) have read and understood those and agreed to be bound by the terms and conditions specified in the Facility Documents and (c) will receive all future correspondence about the Facility (including the Facility Documents) and any other correspondences from the Lender in English language.

5. We request you to also carefully review the privacy policy of the Service Provider (which is available at the link https://www.gopaysense.com/privacy) and the privacy policy of PayU Finance (which is available at the link https://payufin.in/privacy-policy).

6. Any capitalized terms used in this welcome letter and not defined herein shall have the meanings ascribed to those in the Facility Documents.

Yours sincerely,

Digitally signed by PayU Finance India Private Limited
Authorised by: Authorised Signatory
Email:wecare@payufin.com
Date:2025-09-29 15:45:45.893928+05:30

For and on behalf of **PayU Finance India Private Limited**
Authorized Signatory

Application Form
NO. 34910265

Borrower's Name	KOGANTI SRINIVASA RAO
Maximum Sanction Amount (₹)	4,44,180
Rate of interest / Interest (yearly)	**27.0 % per annum**
Tenure	30 number of instalment payable on 3rd day of each calendar month
Credit Facility Amount	4,44,180

PayU Finance India Private Limited

Registered Office:
Wallace Towers, Second Floor,
Crossing of Sahar Road, Vile Parle East
Mumbai, Maharashtra, India, 400057
Telephone: 022-26000868
Email: info@payufin.com
Website: www.payufin.in

Corporate Office:
9th Floor, Bestech Business Tower,
Sohna Road, Sector-48,
Gurgaon, Haryana 122002 India
Telephone: 0124-6624800/900

Kolkata branch:
Awfis - Siddha Esplanade,
3rd floor, 6 Jawaharlal Nehru Road,
Kolkata, West Bengal,
700 013 India
Telephone:

CIN: U65910MH1992PTC068664

Email: info@payufin.com

Website: www.payufin.in

payu finance

Application Form

FOR OFFICE USE ONLY

Date of Application	29 / 09 / 2025
Lead ID	34910265
Credit facility amount (₹)	4,44,180
Sanctioned credit facility amount (₹)	4,44,180

Tenure	30 number of instalment payable on 3rd day of each calendar month
Purpose/end use of credit facility	**To utilize the amounts drawn down under the Credit Facility as a personal loan.**
Credit facility ID	34910265

(Please fill the form in BLOCK letters. Any CANCELLATION to be counter signed)

BORROWER DETAILS

Name of the Borrower KOGANTI SRINIVASA RAO

Father's Name KOGANTI SUBBA RAO

Mother's Name Krishna Kumari

Nationality Indian

Date of Birth 15 / 08 / 1974

Gender ✓ Male ☐ Female

Mobile Number 7903248487

Email Address ksrinivasvarun@gmail.com

PAN AYJPK0678F

Other NA

Communication Address 87/1101-2-H-1, GANESH NAGAR REVENUE WARD 87,Kurnool, Knl-camp-b,Kurnool Urban Kurnool,Andhra Pradesh 518002 NEAR SRI

City Kurnool **Pincode** 518002

State ANDHRA PRADESH **Country** India

Residential/Current Address 87/1101-2-H-1 GANESH NAGAR REVENUE WARD 87 Kurnool, Knl-camp-b Kurnool Urban Kurnool Andhra Pradesh 518002 NEAR SRI RAMACHANDRA

City Kurnool **Pincode** 518002

State ANDHRA PRADESH **Country** India

Occupation Type Salaried

Proof of Identity Aadhaar

Proof of Address Other

Name of Business/Company Jai Raj Ispat Limited

Industry Category

Industry Subcategory

Monthly Income 1,34,700

Credit Facility amount applied for (in INR) * 4,44,180

* The eligibility limit assigned to the Borrower(s) may be different from the credit facility amount applied for by the Borrower(s) and shall be communicated to the Borrower(s) through the Most Important Terms and Conditions.

BANK DETAILS

Name of the Bank AXIS BANK

Account Number 618010100010627

Account Holder Name KOGANTI SRINIVASA RAO

IFSC Code UTIB0000635

MICR Code 815211002

CUSTOMER'S UNDERTAKING:

1. I/We hereby apply for a credit facility which can be utilized/ drawdown as a personal loan (the "Credit Facility") as mentioned in this Application Form. I/We understand that this Application Form along with the Most Important Terms and Conditions, which includes the charge sheet ("MITCs"), the Key Facts Statement ("KFS") and the Credit Facility Agreement sets out or shall set out the salient commercial terms of the Credit Facility whilst the General Terms and Conditions ("GTCs") apply or shall apply to the entire contractual relationship between the Parties. The Welcome Letter, the Application Form, the Credit Facility Agreement, the MITCs, the KFS and the GTCs are collectively referred to as the "Facility Documents".

2. I/We declare that all the particulars, information and details given/ filled in this Application Form are true, correct, complete and up to date in all respects and no information has been withheld. I/We understand that the information given in this Application Form shall form the basis of the grant of any Credit Facility that **PayU Finance India Private Limited (the "Lender")** may decide to grant to me/us and if at any stage of processing of this Application Form or subsequently, it comes to the knowledge of the Lender that, I/We have provided any incorrect or incomplete information, fabricated documents, or fake documents, these will be treated by the Lender as having been manipulated by me/us and the Lender shall have the right to forthwith reject this Application Form, cancel / revoke the sanction of the Credit Facility or further utilizations or drawdowns thereunder or recall any Credit Facility granted at any stage of processing the application or subsequently, without assigning any reason whatsoever and the Lender and its employees/ representatives/ agents / service providers shall not be responsible/liable in any manner whatsoever to me/us for such rejection or cancellation/revocation or any delay in notifying me/us of such rejection or cancellation/revocation. I/We hereby indemnify and undertake to indemnify and hold harmless the Lender and its employees/representatives/agents/service providers from and against all Losses threatened and/or suffered as a result of any of the foregoing. I/We understand that the Lender will also be procuring my/our personal information (including sensitive personal information) from other sources/agents and I/ We have no objection for the same and hereby provide my/our express consent for the same. I/We further confirm that I/We am/are aware of all terms and conditions of availing the Credit facility from the Lender and I/ We have carefully read and understood those. I/We authorize the Lender to make references and inquiries relating to the information given in, or submitted along with, this Application Form as the Lender considers necessary, including from the banks where I/We hold my/our bank accounts. I/We authorize the Lender to procure my /our PAN No/copy of my/our PAN Card, any other identity proof and bank account details from time to time, exchange, part with/share all information relating to my/our loan details and repayment history with other banks/financial institutions /CIBIL/CRIF, other credit information companies, its affiliates and group companies, etc. and periodically obtain / generate CIBIL, CRIF, Experian, Hunter, other credit information companies reposrts and such other reports as may be required for the purpose of the Credit Facility and for purposes of its business (or for the business of its affiliates or group companies or business partners) and I/we and shall not hold the Lender liable for use or obtaining or sharing of this information for the purpose of the Credit Facility and for purposes of its business (or for the business of its affiliates or group companies or business partners). I/We confirm that there are no criminal or insolvency proceedings against me/us and I/ We have not been classified as a willful defaulter in the records of any financial institution or the Reserve Bank of India.

3. I/We hereby irrevocably and unconditionally authorize and grant consent to the Lender to obtain, receive, process, verify and store my/our PAN number/copy of PAN card/Pan details from Protean eGov Technologies Limited (formerly NSDL e-Governance Infrastructure Limited), for undertaking, amongst other, my/our credit assessment, onboarding, conducting due diligence and monitoring my credit worthiness, etc., from time to time.

4. I/We hereby irrevocably and unconditionally authorize and grant consent to the Lender to obtain, receive, process and store my/our know-your customer (KYC) details/documents from Central KYC Registry and/or any other similar entity(ies)/body(ies), for undertaking, amongst other, my/our credit assessment, onboarding, conducting due diligence and monitoring my/our credit worthiness, etc., from time to time.

5. I/We hereby irrevocably and unconditionally authorize and grant consent to the Lender to share with, or disclose, subject to applicable laws, my/our credit information, and/or any other information(s)/document(s) received by the Lender from Credit Bureau, and KYC details/documents held with or received by the Lender with: (a) Lender's agents or service providers for the purposes of: (i) sanctioning the Credit Facility (ii) undertaking collections and recovery services and (iii) such other purpose as may be deemed appropriate by the Lender in relation with the Credit Facility and (b) regulators and other governmental authorities.

6. I/We hereby agree and acknowledge that: (a) the personal information (including sensitive personal information) such as my/our name, age, email id, PAN, Aadhar details, contact details, location, PIN code, GSTIN and bank account details; (b) information in relation to my/our contract/arrangements with the Lender; (c) details of my/our repayment/payments to the Lender; (d) details of repayment cycle; (e) details of my/our disputes with the Lender; and (f) any penalties levied on me/us by the Lender (collectively referred to as Borrower(s) Data), can be subject to the provisions of Applicable Laws, collected, used, processed, stored and shared by the Lender with the Service Provider/lending service provider and/or other third party and in each case and their agents, representatives and service providers, as and when required by the Lender, in relation to the Credit Facility availed by me/us from the Lender till such time I/we: (a) repay to the Lender all outstanding payments in relation to the Credit Facility availed by me/us from the Lender or (b) remain associated with the Lender or (c) as may be required under Applicable Laws (whichever is later).

7. I/We hereby agree and acknowledge that in the event where I/we revoke/withdraw my consent to collect, store, use, process or share any information in relation to me/us that is in the nature of Borrower(s) Data and/or personal data/personal information, I/we shall intimate to the Lender in writing, and shall immediately cease the use of the Credit Facility availed from the Lender and make payments of all amounts in relation to the Credit Facility including, without limitation, the disbursed amount and the interest thereon, including any other charges and fees as specified in the Facility Documents that I/we have entered with the Lender that have remain unpaid.

8. I/we hereby acknowledge and agree that I/we may request to delete or erase any personal information (including, but not limited to, Borrower(s) Data) to the extent permitted to be requested under Applicable Laws and the Lender shall, and shall ensure that the Service Provider/lending service provider and/or the relevant third parties shall, delete or erase such personal information as requested by me/us (provided however that I/we acknowledge and agree that notwithstanding any such request by me/us, the Lender and/or the relevant third parties may retain such information to the extent required under Applicable Laws or as per statutory or regulatory requirements).

9. I/we hereby agree and acknowledge that in the event where I/we do not provide my/our consents for collection, storage, processing, sharing and use of Borrower(s) Data as request above, the Lender may, at its sole discretion, not provide or cease to provide the Credit Facility to me/us.

10. These authorizations / consents are in addition to and without diluting the general consent available under the Applicable Law and/or granted by me/us in any other document or agreement, from time to time.

11. I/ We understand that I/ We can utilize/drawdown the Credit Facility as a personal loan that can be repaid in Instalments and the terms and conditions of the Facility Documents shall accordingly apply.

12. I/ We declare that I/ We have not made any payment in cash, bearer cheques or by any other mode along with or in connection with this Application Form to the person collecting my/our Application Form. I/ We shall not hold the Lender or its employees/representatives/agents/service providers liable for any such payment made by me/us to the person collecting this Application Form.

13. I/We would like to know through, telephonic calls, or SMS on my/our mobile number(s) mentioned in the Application Form, or through any other communication mode, transactional information, various loan offer schemes or loan promotional schemes or any other promotional schemes which may be provided by the Lender or the Service Provider or any of their affiliates or group companies and hereby authorize the Lender / Service Provider and their employees, representatives, agents, or associates to do so. I/We confirm that laws in relation to the unsolicited communication referred in "National Do Not Call Registry" (the "NDNC Registry") as laid down by Telecom Regulatory Authority of India will not be applicable for such communication/calls/ SMSs received from the Lender/ Service Provider, their employees, agents and/or associates. I/We, acknowledge that the Lender and the Service Provider are independent of each other and I/we will not have any claim against the Lender for any loan or other credit facility arranged/ provided by the Service Provider which is not sanctioned/ disbursed by the Lender. I/ We acknowledge that the Lender does not in any manner make any representation, promise, statement or endorsement in respect of any other product or services which may be provided by the Service Provider and will not be responsible or liable in any manner whatsoever for the same.

14. I/We understand that I/We have an option of not providing the information as required in this Application Form or as may be required by the Lender / Service Provider from time to time. However, I/We do hereby expressly and irrevocably authorize the Lender / Service Provider to collect, store, share, obtain and authenticate any aspect of my personal information / KYC either directly or through any of the authorized agencies and disclose such information to its/ their agents/contractors/service providers and to also use such information in any manner that may be required by the Lender / Service Provider including for the purposes of this Credit Facility and for purposes of its/their business (or for the business of their affiliates or group companies or business partners) and for such time period as they may deem fit. In this regard, I/We expressly, unconditionally and irrevocably authorize the Lender / Service Provider to collect, use, verify, authenticate and share my / our personal identity information / KYC in any manner without any further notice to me /us.

15. I/We confirm that I/We know English language and have read and understood and accepted the Facility Documents, including the related "GTCs and MITCs and any other documents as may be executed in relation to the Credit Facility. I/We also understand that the GTCs shall be deemed to be applicable to the Credit Facility and to any utilizations or drawdown granted by the Lender pursuant to this Application Form.

16. The Lender shall be entitled to take such legal action as it may deem fit, upon occurrence of any of the Events of Default as set out and agreed by me/us in the Facility Documents.

17. I/We irrevocably and unconditionally agree(s), acknowledge(s) and accept(s) that my/our personal information (including sensitive personal information) and identity information/KYC will be handled by the Lender in accordance with its privacy policy available at https://www.payufin.in/privacy-policy and the Applicable Laws.

18. I/ We hereby confirm and declare to the Lender that my/ our annual household income is more than INR 3,00,000/- (Indian Rupees Three Lac Only), that is, on an average more than INR 25,000/- (Indian Rupees Twenty-Five Thousand Only) per month. For the purpose of this declaration, my/ our annual household income is considered based on the income of myself, my spouse and our unmarried children.

19. I/We hereby confirm that the interest rate policy of the Lender is available on the website https://www.payufin.in and I/We have read through and understood the same. I/We understand and acknowledge that the Lender shall declare and display the rate of interest (including any revisions in the rate of interest) on its website and the same shall be deemed to be a notice given to me/us. I/We hereby agree that it shall be my/our duty to keep myself/ourselves updated of any such changes or variations in the rate of interest by visiting the website of the Lender as specified above. I/We understand that the Lender may also, but shall not be obligated to, notify me/us of any change in the rate of interest. Such a revised rate of interest shall be applicable prospectively.

20. **I/We hereby confirm that I/We am/are not a politically exposed person (PEP).** I/We understand that PEP are individuals who are or have been entrusted with prominent public functions in a foreign country including the heads of States/Governments, senior politicians, senior government or judicial or military officers, senior executives of state-owned corporations and important political party officials.

21. I/We hereby confirm, understand, and acknowledge that the Lender in its sole and absolute discretion, shall be verifying my/our know-your customer details (including the address details) provided by me/us to the Lender under the Facility Documents, by way of issuing/sending an address verification letter on my/our address or the Lender shall be undertaking video KYC through video based customer identification process (V-CIP) and/or aadhar based OTP e-KYC (e-KYC) confirmation or the Lender shall be verifying my address details through any other methods permitted as per the policy of the Lender or under Applicable Laws.

22. In case of V-CIP and/ or e-KYC verification, I/We understand and acknowledge that the sanctioning of the Credit Facility shall be subject to successful completion of V-CIP and/ or e-KYC verification as determined by the Lender in its sole discretion. In case of non-satisfactory V-CIP and/ or e-KYC or non-completion of the same, I/We understand that the Credit Facility shall not be sanctioned to the Borrower(s).

23. I/We further understand that the verification process (other than through V-CIP/e-KYC) shall be completed on or before the 90th day from the date of acceptance and execution of the Facility Documents by me/us. In the event my/our address verification cannot be successfully completed/concluded by the Lender within the aforesaid time-period, for any reasons whatsoever, including due to delivery failure of the address verification letter issued by the Lender on my/our address, the same shall be construed as an Event of Default under the Facility Document and the Lender in its sole and absolute discretion shall have the right to recall or cancel or discontinue the Credit Facility (either wholly or in part). Once the Lender has issued a communication to me/us regarding recalling or cancelling or discontinuation of the Credit Facility as aforesaid, I/We irrevocably and unconditionally confirm and agree that I/We shall, within 48 (forty-eight) hours of being so called upon, pay the whole of my/our Outstanding to the Lender without any delay or demur.

24. In case of any update in the know-your-customer (KYC) information / documents submitted by the me/ us after sanction of the Facility, I/We shall submit to the Lender the updated KYC information / documents, within 30 days of such update for the purpose of updating the records of the Lenders.

25. All capitalized terms used but not specifically defined in this Application Form shall have the respective meanings ascribed to them in the Facility Documents.

CREDIT FACILITY AGREEMENT

This **CREDIT FACILITY AGREEMENT** ("Credit Facility Agreement") is made at the place and the day mentioned in the Most Important Terms and Conditions ("MITC"):

By and Between

The Borrower(s), details whereof is/are more particularly described in the MITC and, wherever the context so requires, includes a Co-Borrower(s) named therein of the ONE PART,

AND

PAYU FINANCE INDIA PRIVATE LIMITED. a company incorporated under the provisions of the Companies Act, 1956, having Corporate Identification No. U65910MH1992PTC068664, and having its registered office at Wallace Towers, Second Floor, Crossing of Sahar Road, Vile Parle East, Mumbai, Maharashtra, 400 057, its corporate office 9th Floor, Bestech Business Tower, Sector 48, Sohna Road, Gurgaon, Haryana, Pin - 122002 and its branch offices at: (a) Unit bearing no. 214, 1st Floor, DLF South Court Mall, Saket, New Delhi 110017 and and (b) Awfis – Siddha Esplanade, 3rd floor, 6 Jawaharlal Nehru Road, Kolkata, West Bengal – 700013 (referred to as the "Lender" which expression shall, unless repugnant to the context or meaning thereof, be deemed to mean and include its successors, novatees, transferees and assigns) of the OTHER PART.

The Borrower(s) and the Lender are hereinafter, where the context so permits, referred to individually as "Party" and jointly as "Parties".

WHEREAS the Borrower(s) has/have requested the Lender for granting the Credit Facility, to utilize or drawdown such Credit Facility as a personal loan that can be repaid in Instalments, and upon the request of the Borrower(s), the Lender has agreed to grant the Credit Facility upon the mutually agreed terms and conditions as contained in the Facility Documents.

NOW IT IS HEREBY AGREED BETWEEN THE PARTIES HERETO AS UNDER:-

1. Subject to the terms and conditions contained in this Credit Facility Agreement, the GTCs, the MITCs and other Facility Documents, applicable to the Borrower(s) for availing the Credit Facility, the Borrower(s) herein agrees to borrow from the Lender and Lender agrees to lend to the Borrower(s) the sum specified in the MITCs (annexed with this Agreement which shall form an integral part of this Credit Facility Agreement).

2. The Borrower(s) irrevocably and unconditionally agrees and acknowledges that the Sanctioned Credit Facility shall only be utilized in the following manner:

2.1. The Lender shall directly remit the amounts under the Sanctioned Credit Facility: towards personal loan by transferring the same to the Borrower(s)' Bank Account. Further, all or any portion of the Sanctioned Credit Facility may be transferred to the Borrower(s)'s Bank Account in lump.

2.2. The Lender shall also be deducting: (a) a one-time processing fees and (b) amount for making payment to any insurance company towards insurance related charges/ payment under the group insurance policy purchased by the Borrower(s) ("Insurance Payment"), from the Sanction Credit Facility as specified in the MITCs.

2.3. The Lender shall specify the options available to the Borrower(s) for repaying the amounts utilized/ drawn down by the Borrower(s) under the Sanctioned Credit Facility.

2.4. The Sanctioned Credit Facility, and any utilizations or drawdowns thereunder, shall be repaid by the Borrower(s) by way of Instalments as booked in the name of the Borrower(s) by the Lender in amounts and on the Due Dates as set out in the MITCs and/or other documentation as specified by the Lender from time to time.

2.5. The eligibility of the Borrower(s) to utilize or drawdown the Sanctioned Credit Facility cannot be transferred by the Borrower(s) to any other person and any drawdown or utilization effected by a person other than the Borrower(s) shall be deemed to be unauthorized and in breach of the terms and conditions of the Facility Documents. Any unauthorized drawdowns or utilizations will be at the sole cost of the Borrower(s) who shall remain liable for the payment of all outstanding in accordance with the terms and conditions of the Facility Documents.

2.6. The Lender shall be entitled at its sole discretion to review the CIBIL or any other similar credit report of the Borrower(s) or to otherwise assess the credit worthiness of the Borrower(s) prior to permitting any utilizations or drawdowns under the Sanctioned Credit Facility by the Borrower(s).

3. The Borrower(s) certifies that the information and documents provided to the Lender for availing the Sanctioned Credit Facility are true and accurate and no material information has been withheld or suppressed by the Borrower(s). The Borrower(s) hereby authorizes and gives consent to the Lender to disclose, without notice to them, information furnished by him/her/them or related documents executed or to be executed in relation to the Sanctioned Credit Facility availed from the Lender, to the Lender's subsidiaries, affiliates, group companies, credit bureaus, rating agencies, service providers, banks or financial institutions, government or regulatory authorities or third parties for KYC information verification, credit risk analysis, or for other purposes as the Lender may deem fit.

4. The Borrower(s) confirms having received a copy of the the Facility Documents. The Borrower(s) further confirms that he/she/they have read and understood the terms and conditions mentioned in the Facility Documents, including the MITCs, the KFS and the GTCs as applicable to this Sanctioned Credit Facility and the Borrower(s) accepts the terms and conditions unconditionally and agrees that these terms and conditions may be changed by the Lender at any time in compliance with Applicable Law or otherwise and accordingly he/she/they will be bound by the amended terms and conditions.

5. The Borrower(s) unconditionally and irrevocably acknowledges and confirms that:

5.1. Taxes as may be applicable will be charged in connection with the Sanctioned Credit Facility and/or any utilizations or drawdowns thereunder and such charges will be borne solely by the Borrower(s).

5.2. The Interest rate would be computed on a daily balance basis and charged on monthly rests at the rates as set out in the MITCs. Interest rates are fixed interest rates.

5.3. If the Borrower(s) fails to pay any instalment in accordance with the specified timelines, the Interest shall continue to accrue on the principal overdue amount under the respective Instalment for the period beginning from the relevant Due Date for such repayment/payment till the payment is actually made in full to the Lender, and other consequences of such payment default as set out in the Facility Documents shall follow.

5.4. Processing fees will be non-refundable.

5.5. The Lender will not be liable for loss or delay in receipt of documents or photographs by the Lender. All such documents and photographs will not be returned, under any circumstances,other than if required pursuant to any Applicable Law, once submitted to the Lender.

5.6. Instalments will be due on the days and periods as mentioned in the KFS and the MITCs.

5.7. Sanctioned Credit Facility prepayment charges applicable after the Cooling Off Period as deemed fit by the Lender and as disclosed in the Facility Documents, will be charged towards the closure of the Sanctioned Credit Facility and/or any utilizations or drawdowns thereunder before the end of the Tenure.

5.8. All charges or Fees applicable for the Sanctioned Credit Facility as specified in the KFS and the MITCs are acceptable to the Borrower(s). The Borrower(s) confirms that goods and service tax (GST) registration information and registration number, if any, provided by him/her/them are true and correct. The Borrower(s) further understands that if his/her/their GST registration number is not provided or is incorrect, then GST aAuthority may not grant him/her/them GST input credit for GST on charges.

5.9. The Borrower(s) has read and understood the Lender's method of calculating the Interest and the other charges in relation to and as applicable to this Sanctioned Credit Facility as specified in the Facility Documents and has compared the same with those offered by other lenders and all charges or fees applicable for the Sanctioned Credit Facility mentioned in the Facility Documents are unconditionally and irrevocably accepted by the Borrower.

5.10. The Lender is entitled to reduce the eligibility or sanctioned limits of the Borrower(s), recall the Sanctioned Credit Facility, in case of an Event of Default or otherwise at its sole discretion without any notice or modify any of the applicable terms and conditions contained in the Facility Documents and the same shall be binding on the Borrower(s).

5.11. The Borrower(s) hereby confirm, understand, and acknowledge that the Lender in its sole and absolute discretion, shall be verifying Borrower(s)' know-your customer details (including the address details) provided by the Borrower(s) to the Lender under the Facility Documents, by way of issuing/sending an address verification letter on Borrower(s)' address or the Lender shall be undertaking video KYC through video based customer identification process (V-CIP)/ or aadhar based OTP e-KYC (e-KYC) confirmation or the Lender shall be verifying Borrower(s)' address details through any other methods permitted as per the policy of the Lender or under Applicable Laws.

5.12. The Borrower(s) understands and acknowledges that the sanctioning of the Credit Facility shall be subject to successful completion of V-CIP and/ or e-KYC verification as determined by the Lender in its sole discretion. In case of non-satisfactory V-CIP and/ or e-KYC or non-completion of the same, the Borrower(s) understand that the Credit Facility shall not be sanctioned to the Borrower(s).

5.13. The Borrower(s) further understands that the verification process (other than through V-CIP/e-KYC) shall be completed on or before the 90th day from the date of acceptance and execution of the Facility Documents by the Borrower(s). In the event Borrower(s)' address verification cannot be successfully completed/concluded by the Lender within the aforesaid time-period, for any reasons whatsoever, including due to delivery failure of the address verification letter issued by the Lender on Borrower(s) address, the same shall be construed as an Event of Default under the Facility Document and the Lender in its sole and absolute discretion shall have the right to recall or cancel or discontinue the Sanctioned Credit Facility (either wholly or in part). Once the Lender has issued a communication to the Borrower(s) regarding recalling or cancelling or discontinuation of the Sanctioned Credit Facility as aforesaid, the Borrower(s)' irrevocably and unconditionally confirm and agree that the Borrower(s) shall, within 48 (forty-eight) hours of being so called upon, pay the whole of Borrower(s)' Outstanding to the Lender without any delay or demur.

5.14. The Borrower(s) will notify the Lender at least 1 (one) month in advance before making any change to the: (a) current address or (b) communication address or (c) other notice details or (d) any change in the job or profession of the Borrower(s).

5.15. In case of any update in the know-your-customer (KYC) information / documents submitted by the Borrower(s) after sanction of the Credit Facility, the Borrower(s) shall submit to the Lender the updated KYC information / documents, within 30 days of such update for the purpose of updating the records of the Lender.

5.16. The Facility Documents executed by the Borrower(s) contain the entire understanding between the Borrower(s) and the Lender in relation to the Sanctioned Credit Facility and supersede all negotiations, discussions or prior writings in this regard.

5.17. Notwithstanding anything contained in the Facility Documents, the Borrower(s) agrees and acknowledges that subject to Applicable Law and/or under the instructions of RBI, the Lender may revise the Interest rate. Any such variation or change in the Interest rate shall be applicable prospectively and the Lender shall intimate the Borrower(s), by way of dashboard notification on the Service Provider's platform or otherwise in relation to the same, at least 15 days or such period as may be required under Applicable Law or required by RBI, prior to effecting such change or variation. The Borrower(s) shall have an option to prepay the Sanctioned Credit Facility (without any foreclosure or prepayment charges) within a period of 30 days from the end of 15 days or end of such other period as may be required under Applicable Law or prescribed by RBI, in case of such change or variation is not acceptable to the Borrower(s). However, the Borrower(s) shall be required to communicate its decision to the Lender in this regard at any time prior to such variation or change taking effect. Any repayment of the Sanctioned Credit Facility thereafter shall be subject to the applicable varied/changed Interest rate.

5.18. The Borrower(s) would like to know through, telephonic calls, or SMS on Borrower(s)' mobile number(s) mentioned in the Application Form or provided through the Facility application/processing journey, or through any other communication mode, (a) transactional information, various loan offer schemes or loan promotional schemes, or any other promotional schemes which may be provided by the Lender or the Service Provider or any of their affiliates or group companies and (b) Outstanding related information, and hereby authorize the Lender / Service Provider and their employees, representatives, agents, or associates to do so. The Borrower(s) hereby irrevocably and unconditionally waives, the application of any laws in relation to the unsolicited communication (including collection and recovery related communication) referred in National Do Not Call Registry as laid down by Telecom Regulatory Authority of India and confirms that the same will not be applicable for such communications, emails, calls, SMSs and WhatsApp messages received from the Lender, any of its Affiliates or group companies or business partners and their employees, agents and/or associates.

6. Information for the Borrower(s):

6.1. The Lender or any of its employees or representatives or agents or the Service Provideer shall not demand any payments from the Borrower(s) for the processing of the Credit Facility. In case the Borrower(s) is/ are asked for any payments for such purpose, the Borrower(s) must refuse and contact the Lender at its address specified in the KFS.

6.2. The Lender or any of its employees or representatives or agents or the Service Provider have not and shall not verbally communicate anything to the Borrower(s) which is or will be in contradiction to the Facility Documents. The Borrower(s) must contact the Lender on the contact details provided under paragraph (i) above if the Borrower(s) receives any such verbal communication in contradiction to the Facility Documents.

6.3. In case a payment holiday is granted to the Borrower(s), the Due Date for each repayment or payment shall be automatically extended by proportionate number of additional days in accordance with the number of payment holidays granted and/or otherwise at the sole discretion of the Lender.

6.4. For all payments made to the Lender through any representative of the Lender towards any fees/charges, the Borrower(s) is/ are requested to ask for a valid receipt.

6.5. The interest rate policy of the Lender is available on the website https://www.payufin.in . The Lender shall declare and display the rate of interest (including any revisions in the rate of interest) on its website and the same shall be deemed to be a notice to the Borrower(s). The Borrower(s) hereby agree that it shall be the duty of the Borrower(s) to keep himself or herself updated of any such changes or variations in the rate of interest by visiting the website of the Lender as specified above. The Lender may also, but shall not be obligated to, notify the Borrower(s) of any change in the rate of interest. Such a revised rate of interest shall be applicable prospectively.

7. All capitalized terms mentioned in this Credit Facility Agreement and not defined herein shall have the meanings as specified in the Facility Documents.

IN WITNESS WHEREOF, THE PARTIES HERETO HAVE SIGNED THIS AGREEMENT IN ACCEPTANCE OF ALL TERMS AND CONDITIONS STATED ABOVE ON THE DAY, MONTH AND YEAR AS MENTIONED IN THE FACILITY DOCUMENTS.

Name of the Borrower KOGANTI SRINIVASA RAO

(Signature) Signed by Koganti Srinivasa Rao Using OTP on 29/09/2025 through IP address 27.59.63.163

Name of the Co-Borrower Not Applicable

(Signature) Not Applicable

For PayU Finance India Private Limited

Name of Authorised Signatory:

Authorized Signatory

(Signature)

Please read carefully before confirming

ACKNOWLEDGMENT FORM

Date:

29 / 09 / 2025

I/We refer to Application Form bearing Reference No. 34910265 and the Credit Facility Agreement executed and accepted by me / us in favor of PayU Finance India Private Limited ("Lender"). I/We confirm that I/We have applied for the Credit Facility and irrevocably and unconditionally accept and confirm the following information for the purpose of the Facility Documents:

Date	29 / 09 / 2025
Customer identification number	24425557
Name of the Borrower	KOGANTI SRINIVASA RAO
Name of the Co- Borrower	Not Applicable
PAN	AYJPK0678F
GST No (if Applicable)	
Credit Facility amount applied for	INR. 4,44,180
Sanctioned Credit Facility amount	INR. 4,44,180
Tenure	30 number of instalment payable on 3rd day of each calendar month
Rate of Interest / Interest (p.a % on reducing balance)/yearly	**27.0%** **It is being clarified and informed to the Borrower(s) that in the event payment of the Instalment is not received by the Lender on the respective Due Date, the Interest shall continue to accrue on the principal overdue amount under the respective Instalment for the period beginning from the relevant Due Date for such repayment/payment till the payment is actually made in full to the Lender.**
Processing Fees and Insurance Payment	**Processing fees: INR 15,546.30 + Applicable GST of INR. 2,798.33** **INR. 5,180.00 + Applicable GST of INR 790.20** [for making payment to any insurance company towards insurance related payment under the group insurance policy purchased by the Borrower(s)].
Cycle Adjustment Interest	The first Installment will also include the per day Cycle Adjustment Interest equivalent to INR 328.57 which will be levied each day and will be paid along with the Instalment falling due on the first Due Date. [For illustration purpose: if a disbursal under the Credit Facility is effected on 15th of October, and the due date of each instalment is 05th day of each calendar month during the tenure of the Credit Facility, then, the first Due Date of the Instalment will be 05th December. Cycle Adjustment Interest in this case will be computed from 15th October till 04th of November and will be paid along with the Installment falling due on the first Due Date that is, on 05th December.]
Instalments Amount & Frequency	The Sanctioned Credit Facility will be repaid in 30 number of Instalments with each Instalments amount being INR 20,521.00 payable on Due Date Where the Borrower makes a payment which is more than the Instalment amount which is due, in such cases any excess amount paid by the Borrower to the Lender shall be kept in suspense account of the Lender and the Lender shall adjust the excess amounts towards the future Instalments due and payable by the Borrower.
Due Date(s)	The respective Instalment amount(s) shall be paid by the Borrower(s) on the 3rd day of each month during the Tenure of the Sanctioned Credit Facility.
Taxes & Levies	All the charges indicated in the Facility Documents shall be exclusive of all taxes and statutory levies as may be applicable on the same including, without limitation, GST at the rate of 18% (or any other rate that may be specified by the relevant Governmental Authority in this regard from time to time) together with any cess, and such taxes and statutory levies shall be payable by the Borrower as specified in the Facility Documents.

Clarifications in relation to classifying and reporting a loan account as a stressed loan account	The Lender shall be classifying and/or reporting the Borrower(s)'s loan account as a stressed loan account in accordance with Applicable Laws. In this regard, the Borrower(s) must note the following illustrations: (i) If the Due Date for repayment of an Instalment is March 31st and the Borrower(s) fails to pay the relevant Instalment amount on such date in full before the closure of the day-end process, the loan account of the Borrower shall be classified and reported as overdue with effect from March 31st. (ii) If the aforesaid Instalment amount continues to remain overdue for a period of 30 days from the Due Date, that is, the Borrower(s) fails to pay the relevant Instalment amount in full before the closure of the day-end process on the 30th day from the Due Date, the loan account of the Borrower shall be classified and reported as a special mention account-1 ("SMA-1") on April 30th. (iii) If the aforesaid Instalment amount continues to remain overdue for a period of 60 days from the Due Date, that is, the Borrower(s) fails to pay the relevant Instalment amount in full before the closure of the day-end process on the 60th day from the Due Date, the loan account of the Borrower shall be classified and reported as a special mention account-2 ("SMA-2") on May 30th. (iv) If the aforesaid Instalment amount continues to remain overdue for a period of 90 days from the Due Date, that is, the Borrower(s) fails to pay the relevant Instalment amount in full before the closure of the day-end process on the 90th day from the Due Date, the loan account of the Borrower shall be classified and reported non-performing asset ("NPA") on June 29th. (v) A loan account that has been classified as NPAs by the Lender may be upgraded as "standard" asset only if entire arrears of Instalment are paid by the Borrower to the Lender. **Note: Illustrations provided above are only indicative of the classification and reporting practices that will be followed by the Lender and do not dilute the liability of the Borrower(s) to pay the entire Outstandings**
Cooling Off Period/ Look-up Period	**3 (three) days from the date of disbursement under the Sanctioned Credit Facility.** During the aforesaid Cooling Off Period, the Borrower may decide not to continue with the Sanctioned Credit Facility, without being liable to pay any prepayment/foreclosure charges. However, the Borrower shall be liable to pay the outstanding principal amount under the Sanctioned Credit Facility and the proportionate Annual Percentage Rate (as specified in the KFS). Upon such payment by the Borrower, the Sanctioned Credit Facility shall cease to be available, and the Facility Documents shall stand terminated.
Recovery and collection agents	In case the Borrower defaults on repayment of the Facility (including Outstanding), the Lender may, either on its own or through other service providers (including its/their agents), undertake collection or recovery from the Borrower. For details of service providers and/or its/their agents. Please refer to https://www.payufin.in and https://www.payufin.in/dlp-details/paysense **Recovery Partner:** Name: Paysense Services India Private Limited Address: Empresa Building, Fourth Floor, Second Road, Khar West, Mumbai, Maharashtra, 400 052, India Website: https://www.gopaysense.com Email: grievance@paysense.in The Lender shall also be reporting defaults of the Borrower with credit information companies. Further, the Lender shall have the right to replace the Recovery Partner and other collection agents from time to time at their sole discretion. In case of change of the Recovery Partner or any other collection agent, the Lender shall duly inform the Borrower the details of new collection agent/recovery partner.
	MANNER OF REGISTERING COMPLAINTS The Borrower can register grievances in accordance with the process set out below. I. **Level-1 - Customer Service Team:** **A. Approach** The Borrower can approach PaySense/Service Provider/LSP in the following manner within reasonable time from the date of the transaction relating to the grievance: (i) email details of the Grievance at support@gopaysense.com or (ii) Registered post/speed post/courier at registered office address of PaySense at Empresa Building, Fourth Floor, Second Road, Khar West, Mumbai – 400 052, Maharashtra, India. **B. Acknowledgement** (i) All Grievances received in the manner set out in paragraph A above are acknowledged by a system generated response or via individual emails (to the extent possible) and (registered office address) are acknowledged by individual emails. (ii) The Borrower will be given a ticket bearing a reference number for all future communication around the particular complaint. The aspects relating to quoting the ticket number in future communications is provided below. (iii) The customer support team initiates action on the grievance and where necessary contacts the Borrower for any additional details as may be necessary to address the Grievance. (iv) The Customers are kept informed of the action taken, the progress while

redressing grievances, and/or, the reasons for delay if any, in redressing any Grievance.

(v) The Customers are informed via e-mail about the follow-up action and the turnaround times for complaint resolution.

C. Resolution

(i) All grievances received are resolved within the timelines set out in paragraph 2 below.

(ii) In case any grievance takes more than the specified resolution time, the Borrowers are:

(a) intimated; accordingly, and

(b) kept updated on the progress / status of the Grievance on a periodic basis until the Grievance is resolved.

D. Customer Grievance Redress Escalation

In case the Borrower:

(i) does not receive a response within the timelines set out in Level 1; or

(ii) is dissatisfied with the response received from PaySense,

the borrower may escalate the Grievance to the next level as indicated below.

Grievance Redressal Mechanism of the Lender

II. **Level-2 - First Appeal:**

The Borrower can address the Grievance to the below address for escalations in accordance with paragraph 1.1.4 above:

Grievance Redressal Office:

Name	Suraj Sapte
Address	PayU Finance India Private Limited Wallace Towers, Second Floor, Crossing of Sahar Road, Vile Parle East, Mumbai, Maharashtra, 400 057 India
Email	grievanceredressalofficer@payufin.com

All escalations received are acknowledged within 24 Business hours and a resolution is provided by PayU Finance within the timelines set out in paragraph 2 below.

In case any escalation takes more than the specified resolution time, the Borrowers are:

(i) intimated; accordingly, and

(ii) kept updated on the progress / status of the escalation on a periodic basis until the escalation is resolved.

Borrowers are required to approach Level 2 with the original ticket number generated by PayU Finance

III. **Level-3 - Second Appeal:**

In case there is no response within the defined timeframe for Level 2 or in case the response provided is not satisfactory, the Borrower can escalate the matter to:

Nodal Officer:

Name	Ms. Bhavana Bharat
Address	PayU Finance India Private Limited Wallace Towers, Second Floor, Crossing of Sahar Road, Vile Parle East, Mumbai, Maharashtra, 400 057 India
Email	nodalofficer@payufin.com

All escalations received under Level 3 are acknowledged within 48 business hours and a resolution is provided within the timelines set out in paragraph 2 below.

In case any escalation takes more than the specified resolution time, the Borrowers are:

(i) intimated; accordingly, and

(ii) kept updated on the progress / status of the escalation on a periodic basis until the escalation is resolved.

While making an escalation under Level 3, the Borrower is required to send an email to the Nodal Officer setting out a description of the grievance viz ticket number and discrepancies due to which the grievance could not be resolved.

IV. **Time Estimate**

PayU Finance endeavours to address all grievances within the below mentioned timelines, except where an investigation is involved in resolving the same:

Level 1 - Customer Service Team

Response to a Customer's query / Concern	24 Business hours
Follow-up queries	48 Business hours
Borrower grievances resolution process	10 Business Days

Level 2 - First Appeal

Acknowledgement	24 Business hours
Further response	10 Business Days

Level 3 - Second Appeal

Acknowledgement	48 Business hours
Further response	10 Business Days

In case the grievance is not redressed within a period of 30 days or the Borrower is not satisfied with the resolution or has not received any resolution within the time as prescribed in this regard the Borrower can appeal to the RBI Ombudsman, as per the 'Reserve Bank-Integrated Ombudsman Scheme 2021' , a copy of which has been uploaded on the PayU Finance's website. The details for registering the complaint with RBI Ombudsman are as follows:-

Website:https://cms.rbi.org.in

Mail to:CRPC@rbi.org.in

Write to: Centralised Receipt and Processing Centre' Reserve Bank of India, 4th Floor, Sector 17, Chandigarh – 160017

Toll free: 14448 (9:30 am to 5:15 pm)

Details of Officers

Details of the Principal Nodal Officer

Name	Ms. Bhavana Bharat
Address	PayU Finance India Private Limited Wallace Towers, Second Floor, Crossing of Sahar Road, Vile Parle East, Mumbai, Maharashtra, 400 057, India
Mobile Number:	022 6982 1177 (Monday to Friday between 10AM-7PM)
Email	nodalofficer@payufin.com

Details of the RBI Ombudsman

Address:	RBI Ombudsman C/o Reserve Bank of India, 1st Floor, RBI Byculla Office Building, Opp. Mumbai Central Railway Station, Byculla, Mumbai-400008.
Telephone Number:	022- 23001280
Fax Number:	2302 2024
Email	CRPC@rbi.org.in

The above grievance redressal mechanism is subject to change from time to time, Borrower/customer is requested to visit www.payufin.com for checking any updates/modifications.

Email id and phone number of nodal/ grievance redressal officer of the Lender	Email-1: support@gopaysense.com Email-2: grievanceredressalofficer@payufin.com Phone number - 022 6982 1144 (Monday to Friday between 10AM-7PM) Email-3: nodalofficer@payufin.com Phone number: 022 6982 1177 (Monday to Friday between 10AM-7PM) Phone number for Lender: (Monday to Friday between 10AM-7PM) For details grievance redressal mechanism of the Lender, please visit www.payufin.com
Email id and phone number of nodal/ grievance redressal officer of the Lender	Email-1: support@gopaysense.com Email-2: grievanceredressalofficer@payufin.com Phone number - 022 6982 1144 (Monday to Friday between 10AM-7PM) Email-3: nodalofficer@payufin.com Phone number: 022 6982 1177 (Monday to Friday between 10AM-7PM) Phone number for Lender: (Monday to Friday between 10AM-7PM) For details grievance redressal mechanism of the Lender, please visit www.payufin.com

<table>
<tr><td>Foreclosure/Prepayment Charges</td><td>
After the Cooling-Off Period, if the Borrower intends to foreclose the Sanctioned Credit Facility for any reasons whatsoever, then the following foreclosure charges shall be required to be paid by the Borrower for foreclosing the Credit Facility. The applicable foreclosure charges mentioned below shall be in addition to the Outstanding under the Sanctioned Credit Facility.
<table>
<tr><th>Time-period for foreclosure</th><th>Foreclosure charges</th></tr>
<tr><td>If the Borrower intends to foreclose the Sanctioned Credit Facility within a period of 6 months from the date of disbursement of the Sanctioned Credit Facility.</td><td>Not exceeding 8% of the Outstanding amount under the Sanctioned Credit Facility plus applicable GST.</td></tr>
<tr><td>If the Borrower intends to foreclose the Sanctioned Credit Facility anytime between the 7th month till the 12th month, from the date of disbursement of the Sanctioned Credit Facility</td><td>Not exceeding 7% of the Outstanding amount under the Sanctioned Credit Facility plus applicable GST.</td></tr>
<tr><td>If the Borrower intends to foreclose the Sanctioned Credit Facility anytime between the 13th month till the 24th month, from the date of disbursement of the Sanctioned Credit Facility</td><td>Not exceeding 6% of the Outstanding amount under the Sanctioned Credit Facility plus applicable GST.</td></tr>
<tr><td>If the Borrower intends to foreclose the Sanctioned Credit Facility any time after the 25th month, from the date of disbursement of the Sanctioned Credit Facility</td><td>Not exceeding 5% of the Outstanding amount under the Sanctioned Credit Facility plus applicable GST.</td></tr>
</table>
The Borrower(s) agrees and acknowledges that the foreclosure charges as specified above are subject to change from time to time at the discretion of the Lender. Any such change in the foreclosure charges shall be intimated to the Borrower(s), at least 15 days prior to implementing such change. The Borrower(s) shall have an option to foreclose the Sanctioned Credit Facility (by paying the existing foreclosure charges in addition to Outstanding under the Sanctioned Credit Facility) within a period of 30 days from the end of 15 days (as mentioned above) in case such change is not acceptable to the Borrower(s). However, the Borrower shall be required to communicate his/her decision to the Lender in this regard at any time prior to such change taking effect. Any foreclosure of the Sanctioned Credit Facility thereafter shall be subject to the applicable changed/revised foreclosure charges.
</td></tr>
<tr><td>Bounce/Late Payment Charges</td><td>If the Borrower(s) has enabled an auto debit facility for any amounts payable by the Borrower(s) under the Facility Documents and any such auto debit request is declined for any reason, then bounce charges upto INR {{ kfs.bounce_charges }} will be levied for each such instance/ dishonor of NACH/e-mandate.</td></tr>
<tr><td>Penal charges</td><td>INR. [NIL]</td></tr>
<tr><td>Foreclosure criteria</td><td>
<ol>
<li>After the Cooling-Off Period, a 15 (fifteen) days prior notice from the Borrower(s) to the Lender will be required for any foreclosure subject to payment of applicable foreclosure charges, and</li>
<li>Only foreclosure/prepayment of full Outstanding amount under the Sanctioned Credit Facility is permitted.</li>
</ol>
</td></tr>
</table>

- PLEASE DO NOT SIGN AND ACCEPT THE ABOVE DOCUMENT, IF BLANK.

Acknowledgement

I/We acknowledge that:

The above are the MITCs of the aforesaid Sanctioned Credit Facility, and all other terms and conditions of the Sanctioned Credit Facility shall be as specified in the Application Form, KFS, the Credit Facility Agreement, the GTCs and other Facility Documents.

I/ We are aware that the KFS, Credit Facility Agreement (together with MITCs and the charge sheet), the GTCs and other Facility Documents executed or accepted by me/ us constitute the entire agreement between the Borrower(s) and the Lender with respect to the subject matter hereof, and supersede all negotiations or prior writings, including the terms and conditions of the Sanction Letter. In the event of any conflict between the terms, conditions, and provisions of the KFS, Credit Facility Agreement (together with MITCs and the charge sheet), the GTCs and any other Facility Documents, the terms and conditions mentioned in the KFS shall prevail to the extent of such conflict and all other terms and conditions of the Credit Facility Agreement (together with MITCs and charge sheet), the GTCs and other Facility Documents shall also remain binding on me/us).

Name of the Borrower KOGANTI SRINIVASA RAO

(Signature) Signed by Koganti Srinivasa Rao Using OTP on 29/09/2025 through IP address 27.59.63.163

Name of the Co-Borrower Not Applicable

(Signature) Not Applicable

For PayU Finance India Private Limited

Name of Authorised Signatory:

Authorized Signatory:

(Signature)

GENERAL TERMS AND CONDITIONS

These **GENERAL TERMS AND CONDITIONS ("GTCs")** shall be applicable to the Sanctioned Credit Facility extended/ to be extended by **PAYU FINANCE INDIA PRIVATE LIMITED** (also referred to as the **"Lender"**, which expression shall, unless repugnant to the context or meaning thereof, be deemed to mean and include its successors, novatees, transferees and assigns) to the Borrower(s), and the terms of which have been read by the Borrower(s) and to which the Borrower(s) expressly consents.

1. DEFINITIONS AND INTERPRETATION

1.1. The following words and expressions shall, unless the context otherwise requires, have the following meanings in the Facility Documents:

(a) **"Anti-Financial Crime Law"** means any Applicable Law relevant to counter bribery and corruption, money laundering and restricted export-import transactions in the conduct of business, and the minimum requirements adopted by the United States (Office of Foreign Assets Control), United Nations and European Union in relation to anti-bribery and anti-corruption, anti-money laundering/combating the financing of terrorism and other applicable export control laws and regulations including, but not limited to, any restrictions on the export or import dealings with Sanctioned Persons.

(b) "**Annual Percentage Rate**" or "**APR**" is the annual cost of credit to the Borrower which includes interest rate and all other charges associated with the Sanctioned Credit Facility and which is specified in the KFS which will be sent to the Borrower by the Lender.

(c) **"Applicable Law(s)"** means any constitution, statute, law, equity, regulation, ordinance, rule, judgment, order, decree, authorization, clearance, approval, directive, guideline, policy, requirement, or other governmental restriction or any similar form of decision or determination by, or any interpretation or administration of any of the foregoing, by any Governmental Authority, whether in effect as of Effective Date or thereafter and in each case as amended, from time to time, as applicable to a Party.

(d) **"Application Form"** means the Credit Facility application form filled/to be filled and submitted by the Borrower(s) and the Co-Borrower(s), as the context may permit or require, requesting the provision of the Credit Facility, together with annexures, schedules and addenda (if any) and all other information, particulars, clarifications, letters and undertakings and declarations, if any, furnished by the Borrower(s) to the Lender from time to time in connection with the Credit Facility.

(e) **"Arbitration Act"** has the meaning given to the term under Clause 13.2.

(f) **"Borrower(s)' Bank Account"** means the bank account of the Borrower(s) shared with the Lender for: (i) making Disbursement of the Sanctioned Credit Facility towards the personal loan and/or any utilizations or drawdowns thereunder; and/or (ii) making payment/repayment of the Instalments towards the Sanctioned Credit Facility and in relation to which the necessary Payment Instruction(s) and/or Payment Mandate(s) has been duly issued by the Borrower(s).

(g) **"Borrower(s)"** means and refers, jointly and severally, to the applicants (more particularly mentioned in the Application Form and/or MITCs and includes co-applicants, wherever applicable) who has/have been sanctioned/granted/disbursed the Sanctioned Credit Facility by the Lender pursuant to the relevant Application Form submitted by such applicant(s) and co-applicant(s) to the Lender for availing the Sanctioned Credit Facility and depending upon the nature of the Borrower(s), shall, unless repugnant to the context or meaning thereof, be deemed to include, his/her/their heirs, executors and administrators.

(h) **"Borrower Information"** has the meaning given to the term under Clause 14.1.

(i) **"Business Day"** means a day on which banks are open for business in Gurugram, Mumbai and New Delhi, not being any day which is a public holiday for the purposes of Section 25 of the Negotiable Instruments Act, 1881.

(j) **"CIBIL"** has the meaning given to the term under Clause 15.1.

(k) **"Credit Facility" or "Facility"** means the credit facility availed/to be availed by the Borrower(s) from the Lender from time to time, for such Purpose/ end use as mentioned in the Application Form.

(l) **"Credit Facility Agreement"** means the credit facility agreement entered into between the Borrower(s) and the Lender in relation to the Facility.

(m) **"Co-Borrower(s)"** means any person(s) named and described as co-applicant or co-borrower(s) on the Application Form.

(n) **"Cooling Off Period"** means the number of days (as specified in the KFS the MITC and/or any other Facility Document) from the date of disbursement under the Credit Facility, within which the Borrower shall have the option of exiting the Credit Facility by paying the outstanding principal amount under the Credit Facility and proportionate Annual Percentage Rate.

(o) **"Cycle Adjustment Interest"** means the Interest levied by the Lender on the Sanctioned Credit Facility and/or any utilizations or drawdowns thereunder from the date of Disbursement upto the date of commencement of the first Instalment cycle.

(p) **"Default"** includes Events of Default and any event, which with the lapse of time or notice, would become an Event of Default.

(q) **"Disbursement"** means the transfer of funds by the Lender into the Borrower's Bank Account for such Purpose/ end use as mentioned in the Application Form , in accordance with the terms and conditions as specified in the Facility Documents.

(r) **"Disputes Notice"** has the meaning given to the term under Clause 13.2.

(s) **"Due Date(s)"** means each due date for payment/ repayment by the Borrower(s) of the Instalment(s) and other amounts as set out in the MITCs or any other document or communication, as the case may, as determined by the Lender from time to time.

(t) **"Effective Date"** means the date of the acceptance and execution of the Facility Documents by the Borrower(s).

(u) **"Event of Default"** means any event or circumstance set out in Clause 7.1.

(v) **"Facility Documents"** means the Welcome Letter, the Application Form, the Key Facts Statement, the Credit Facility Agreement, the MITCs (which includes the charge sheet), these GTCs and/or all other agreements, instruments, undertakings, indentures, deeds, writings and other documents executed or entered into, or to be executed or entered into, by the Borrower(s), the Lender and/or any other person, in relation, or pertaining, to the Sanctioned Credit Facility and the transactions contemplated under the Facility Documents, and includes all modifications and amendments thereto.

(w) **"Fees"** means, without limitation, service fees, additional service fees, processing fees, administrative fees, documentation fees (if any) and/or such other fees/ charges as may be levied by the Lender in relation to the sanction/ grant of the Credit Facility.

(x) **"Governmental Authority"** means any (i) government (central, state or otherwise) or sovereign state; (ii) governmental agency, semi-governmental or judicial or quasi-judicial or regulatory or supervisory or administrative entity, department or authority, court or tribunal or any political subdivision thereof; or (iii) international organization, agency or authority, including, without limitation, any stock exchange or any self-regulatory organisation, established under any Applicable Law**.**

(y) **"Instalment(s)"/ "Equated Periodic Instalment/ EPI"** means, unless otherwise specified in the Facility Documents, the equated monthly instalments of the amount consisting of the principal and Interest throughout the Tenure of the Sanctioned Credit Facility, which are due and payable by the Borrower(s) towards repayment of the Sanctioned Credit Facility, as more particularly mentioned/detailed in the MITCs.

(z) **"Interest"/ "Rate of Interest"** means the interest chargeable by the Lender from the Borrower(s) on the principal amount of the Sanctioned Credit Facility and/or any utilizations or drawdowns thereunder at the applicable rates of Interest as more specifically mentioned in the MITCs.

(aa) "**Insurance Company Bank Account**" means the bank account(s) of an insurance company and/or its agent or any group insurance administrator associated with the insurance company, where the Lender makes any payments

(for and on behalf of the Borrower(s)) towards Insurance Payment charges by deducting such amount out of the Sanctioned Credit Facility.

(bb) "**Insurance Payment**" has the meaning given to the term under the Credit Facility Agreement.

(cc) **"KYC"** means know your customer requirements as may be applicable in terms of the RBI guidelines.

(dd) "**Key Facts Statement**"/ "**KFS**" means the document containing key facts and terms and conditions of the Credit Facility including, but not limited to, the Annual Percentage Rate and the Tenure of the Credit Facility which are in simple and easier language, provided to the Borrower by the Lender.

(ee) **"Lender's Group"** means the Lender and its affiliates.

(ff) **"Losses"** include any and all costs, charges, expenses, damages, penalties, fines, imposts, payments, losses, demands, liabilities, claims, actions, proceedings, judgments, orders or other sanctions.

(gg) **"Material Adverse Effect"** means (i) any material adverse change in the ability of the Borrower(s) to comply with his/her obligations under the Facility Documents; (ii) any material adverse change in the business, financial or other condition, credit standing, operations, assets, properties, performance and prospects of the Borrower(s); (iii) any material adverse change in the domestic or international money, financial or capital markets, or in the debt markets, or in the economic situation of India; (iv) any material adverse change on the validity or enforceability of any of the Facility Documents (including the ability of the Lender to enforce any of its remedies under any of them); or (v) any material change in Applicable Law**.**

(hh) **"Most Important Terms and Conditions" or "MITCs"** means the document containing the salient terms and conditions, pertaining to the Credit Facility availed/to be availed, which is accepted/confirmed by the Borrower(s) for consideration and processing by the Lender, and which, for the avoidance of doubt, includes the charge sheet. MITC forms an integral part of Credit Facility Agreement.

(ii) **"Outstanding(s)" or "Obligations"** includes, at any time, all amounts payable by the Borrower(s) to the Lender pursuant to the Facility Documents, including without limitation, the present and future obligations and liabilities of the Borrower(s) to pay/ repay the principal amount of the Sanctioned Credit Facility, and Interest thereon and all stamp duties, taxes, expenses, Fees, liquidated damages, indemnities, costs, charges and expenses including, without limitation, any statutory or legislative charges, penalties, if any, in connection with the Sanctioned Credit Facility; and such other expenses incurred in relation to any exercise by the Lender of its rights under the Facility Documents, together with legal fees and all other related costs.

(jj) **"Parties"** means, collectively, the Borrower(s) and the Lender and the term "**Party**" means each or any of them, as the context may require.

(kk) **"Payment Instruction(s)"** has the meaning given to the term under Clause 4.2.

(ll) **"Payment Mandate(s)"** has the meaning given to the term under Clause 4.2.

(mm) **"Purpose"** means the purpose for which the Sanctioned Credit Facility is sanctioned as specified in the Application Form and/or other Facility Documents.

(nn) **"RBI"** means Reserve Bank of India.

(oo) "**Repayment Schedul**e" means the repayment schedule annexed with the KFS specifying the Instalment amounts and Instalment frequency.

(pp) **"Sanctioned Credit Facility"** means the credit facility sanctioned by the Lender and allowed to be utilized or drawn down by the Borrower(s), as more specifically set out in MITCs or other Facility Documents

(qq) "**Sanction Letter**" means an indicative and non-binding letter issued by the Lender containing some indicative terms and conditions of the Credit Facility proposed to be granted to the Borrower(s).

(rr) **"Sanctioned Persons"** refer to those persons who are identified in the sanctions list maintained by the various Governmental Authorities including the United States (Office of Foreign Assets Control), United Nations and European Union.

(ss) **"Service Provider"** means PaySense India Services Private Limited, a company incorporated under the Companies Act, 2013, having Company Identification Number U74110MH2018FTC317439 and having its registered office at: Empresa Building, Fourth Floor, Second Road, Khar West, Mumbai, Maharashtra, 400 052, India and which owns and operates a digital lending platform currently hosted at the web page: https://www.gopaysense.com/ and is also made available in the form of a mobile application currently named as the PaySense mobile application.

(tt) "**Service Platform**" has the meaning given to the term under Clause 3.3.

(uu) **"Tax"** means all forms of present and future taxes (including but not limited to indirect taxes such as service tax or other similar taxes), deductions, withholdings, duties, imposts, levies, cesses, fees, charges, social security contributions and rates imposed, levied, collected, withheld or assessed by any Governmental Authority or other taxing authority in India and any interest, additional taxation penalty, surcharge, cess or fine in connection therewith and **Taxes** shall be construed accordingly

(vv) **"Tenure"** means the tenure of the Sanctioned Credit Facility as specified in the MITCs.

(ww) "**Verification Authorities"** has the meaning given to the term under Clause 15.2.

(xx) "**Welcome Letter**" means the letter/ email sent by the Lender to the Borrower at the time of disbursement or after the disbursement of the Credit Facility to the Borrower which includes, amongst others, copy of the Application Form, Credit Facility Agreement, the KFS, the MITCs and the GTCs, in relation to the Facility.

1.2. **Interpretation**

In these GTCs, unless the context otherwise requires or unless otherwise expressly provided, references to:

(i) all schedules, recitals and other attachments hereto, or expressly identified as part of these GTCs and/or any other Facility Document, are incorporated herein by reference, and taken together with these GTCs, shall constitute but a single document and constitute an integral and operative part of such Facility Document;

(ii) statutory provisions are to be construed as references to those provisions as respectively amended, consolidated, extended or re-enacted from time to time, and to any orders, regulations, instruments or other subordinate legislation made under the relevant statute;

(iii) the singular includes the plural (and vice versa);

(iv) the headings in these GTCs are inserted for convenience of reference only and are to be ignored in construing and interpreting these GTCs;

(v) the words "include" or "including" shall be construed without limitation;

(vi) a gender shall include references to the female, male and neutral genders;

(vii) time is of the essence in the performance of the Parties' respective obligations hereunder. If any time period specified herein is extended, such extended time shall also be of the essence;

(viii) any number of days specified in these GTCs shall be reckoned inclusive of the first and the last day unless the last day does not fall on a Business Day, in which case the last day shall be the preceding day which is a Business Day;

(ix) save and except as specifically provided in the Facility Documents, any determination with respect to the 'materiality' or 'reasonability' of any matter including of any event, quantity, degree, occurrence, circumstance, change, fact, information, document, authorization, proceeding, act, omission, claim, breach, default or otherwise shall be made by the Lender in its sole and absolute discretion;

(x) all capitalized terms used but not specifically defined herein shall have the respective meanings ascribed to them under various Facility Documents;

(xi) where there are co-applicants under the Application Form, reference to the Borrower under the Facility Documents shall be construed to refer to each co-applicant and each such co-applicant shall be jointly and severally liable for all the obligations of the Borrower (including, the Outstanding) under the Facility Documents; and

(xii) in case of any inconsistency between the Application Form, the Credit Facility Agreement, the Key Facts Statement, the Most Important Terms and Conditions and the General Terms and Conditions, the order of precedence shall be as follows: (i) the Key Facts Statement; (ii) the Most Important Terms and Conditions; (iii) the Credit Facility Agreement; (iv) the Application Form; and (v) the General Terms and Conditions. The rest of the Most Important Terms and Conditions and the General Terms and Conditions will remain binding in accordance with their respective terms.

2. TERM OF THE CREDIT FACILITY

2.1. The Facility Documents shall be effective on and from the Effective Date and shall subsist until all monies due and payable by the Borrower(s) to the Lender under the Facility Documents and all other documents executed pursuant hereto have been fully paid to and received by the Lender to its satisfaction (**"Tenure"**).

3. CREDIT FACILITY AND ITS DISBURSEMENT

3.1. Pursuant to the request of the Borrower(s) and based on the representations, warranties, covenants and undertakings of the Borrower(s) as set out in the Facility Documents the other documents executed or tendered by the Borrower(s) in relation to the Credit Facility, the Lender has agreed to provide the Credit Facility as requested by the Borrower(s) of the amount as sanctioned by the Lender as set out in the Application Form / MITCs on the terms and conditions contained herein and in the other Facility Documents. The Borrower(s) undertakes to notify the Lender, in writing, of any circumstance which may affect the correctness of any information or particulars provided by the Borrower(s) in the Application Form and/or any other Facility Documents in relation to the Credit Facility, immediately on the happening or occurrence of such circumstance. In the event of death of the Borrower(s), the Lender shall at its discretion deal with the heirs and legal representatives of the deceased individual for discharge of liabilities under the Facility Documents.

3.2. **Sanctioned Credit Facility:** Subject to these GTCs, the Borrower(s) agrees to borrow from the Lender and Lender agrees to lend to the Borrower(s), the Sanctioned Credit Facility for the Purpose mentioned in the Application Form and/or the MITCs. The principal amount of the Sanctioned Credit Facility approved by the Lender and to be availed of by the Borrower(s) shall be the amount specified in the MITCs.

3.3. **Deduction out of the Sanctioned Credit Facility towards Insurance Payment charges:**

Deduction out of the Sanctioned Credit Facility towards the Insurance Payment charges shall be subject to the following terms and conditions:

(a) the Borrower(s) shall specifically opt/select for the insurance product being marketed to the Borrower(s) on the 'PaySense' mobile application or website https://www.gopaysense.com ("**Service Platform**");
(b) any such payment of Insurance Payment charges by the Lender (on behalf of the Borrower(s)) shall be subject to the Borrower(s) providing his/her irrevocable and unconditional consent to the Lender to deduct from the Sanctioned Credit Facility certain insurance-related payment charges as specified on the Service Platform;
(c) the Lender shall pay such insurance related payment charges to the relevant insurance company and/or any of the partner/agent/group administrator of such insurance company on behalf of the Borrower(s); and
(d) any such payment of the Insurance Payment charges on behalf of the Borrower(s) shall be made when the Lender makes a deduction of the insurance related payments as set out in clause 3.3 (b) above.

3.4. **Interest and Charges:** The Borrower(s) shall be liable to pay Interest on the Sanctioned Credit Facility at the Interest rate as applicable to the Borrower(s) from time to time and on the date(s) as specified in KFS and the MITCs (which include the charge sheet) subject to Applicable Law or as amended by the Lender in writing from time to time. The Borrower(s) hereby agrees, acknowledges, and confirms that in the event payment of the Instalment is not received by the Lender on the respective Due Date, the Interest shall continue to accrue on the principal overdue amount under the respective Instalment for the period beginning from the relevant Due Date for such repayment/payment till the payment is actually made in full to the Lender.

3.5. The Interest on the Sanctioned Credit Facility shall begin to accrue from the date of Disbursement(s) of the Sanctioned Credit Facility or any part thereof into the Borrower(s)' Bank Account. The Borrower(s) agrees and acknowledges that the Interest is based on risk gradation, cost of funds, margin and risk premium and is in line with the Lender's credit evaluation. Notwithstanding anything contained in the Facility Documents, the Borrower(s) agrees and acknowledges that subject to Applicable Law and/or under the instructions of RBI and/or the behaviour and performance of the Borrower(s) during the Tenure of the Sanctioned Credit Facility, the Lender may revise the Interest rate. Any such variation or change in the Interest rate shall be applicable prospectively and the Lender shall intimate the Borrower(s), by way of dashboard notification on the Service Provider's mobile application or otherwise in relation to the same, at least 15 days or such period as may be required under Applicable Law or required by RBI, prior to effecting such change or variation. The Borrower(s) shall have an option to prepay the Sanctioned Credit Facility (without any foreclosure or prepayment charges) within a period of 30 days from the end of 15 days or end of such other period as may be required under Applicable Law or prescribed by RBI, in case of such change or variation is not acceptable to the Borrower(s). However, the Borrower shall be required to

communicate its decision to the Lender in this regard at any time prior to such variation or change taking effect. Any repayment of the Sanctioned Credit Facility thereafter shall be subject to the applicable varied/changed Interest rate.

3.6. The Borrower(s) agrees to bear and pay to the Lender such Fees and charges with taxes, as applicable, and as more specifically mentioned in the MITCs (which includes the charge sheet) and the KFS (which *inter alia* includes APR), and which includes, without limitation, the documentation and processing charges (if any), Interest, and/or such other charges as may be mentioned in the MITCs (which includes the charge sheet) and the KFS (which *inter alia* includes APR).

3.7. **Exclusion from Lender's liability**

3.7.1. The Lender shall not be responsible or liable in any manner for any direct, indirect, special or consequential damages or Losses suffered by the Borrower(s): (a) pursuant to any action or omission by the Lender under or in connection with the Facility Documents or any transaction contemplated under the Facility Documents, (b) for anything *bona fide* done or omitted or suffered in reliance upon the advice or information sought by the Lender from its agent or advisor or as a consequence of any mistake or oversight or error of judgment on the part of the Lender or any other person appointed by the Lender hereunder, or (c) pursuant to any diminution in the value of any funds due to any reason whatsoever (including, without limitation, the occurrence of any extraordinary event) and whether arising in India or in any place or otherwise, any loss of business, loss of reputation, loss of opportunity, loss of profit or exemplary damages, or any type of special, consequential or indirect loss whatsoever.

3.7.2. No other branch, subsidiary or affiliate of the Lender shall be responsible or liable for any of the liabilities or obligations of the Lender hereunder arising from any cause whatsoever whether or not beyond the control of the Lender and shall not in any circumstances be responsible or liable in any manner for any direct, indirect, special or consequential damages or Losses suffered by the Borrower(s).

3.7.3. All obligations of the Lender and the performance thereof by the Lender shall be excused by events beyond the control of the Lender (including circumstances caused by events of force majeure, including acts of God, calamity, natural disaster, industrial actions, power failure, computer breakdown, war, acts of terrorism, civil strife, sabotage, the occurrence of any extraordinary event, delays on the part of any agents or other entities or authorities or any other factors beyond the control of the Lender).

3.7.4. The Lender may at its sole discretion grant time or other indulgence to the Borrower(s) or any other person, without impairing or affecting in any way any of the Lender's rights as against the Borrower(s) or any such other persons.

3.7.5. Nothing in the Facility Documents shall require the Lender to do or not do anything if it would or might in its reasonable opinion constitute a breach of any of its policies or any Applicable Law (including any Anti-Financial Crime Law) or any requirements of any Governmental Authority.

3.7.6. Any member of the Lender's Group may intercept and investigate any payment messages and other information or communications sent to or by the Borrower(s) or on Borrower's behalf and may delay, block or refuse to make any payment. Payment screening may cause a delay in processing certain information.

3.8. **Borrower(s) rights and liabilities**

3.8.1. The Borrower(s) does not in any event have, or shall acquire, any rights against the Lender except as expressly conferred on the Borrower(s) pursuant to the Facility Documents.

3.8.2. The Borrower(s) shall be liable for any Losses suffered by the Lender or the Borrower(s) arising from or in relation to the Borrower(s)' inability or incapacity of whatever nature to act and comply with its obligations under the Facility Documents.

3.8.3. The Borrower(s) agrees and confirms that the terms and conditions of the Facility Documents do not constitute any warranty (express or implied) or similar obligation on the part of the Lender.

3.8.4. If a Facility Document specifies when the Borrower(s) must perform an obligation, the Borrower(s) must perform it by the time specified. The Borrower(s) must perform all other obligations promptly.

3.8.5. In the event of breach of the Facility Documents by the Borrower, the Lender will to the fullest extent permitted by Applicable Law, and in addition to the right to be indemnified under Clause 10, be entitled to an order of specific performance as well as damages at its sole discretion.

3.9. **No waiver**

3.9.1. No failure to exercise, nor any delay in exercising, on the part of the Lender, any right or remedy under the Facility Documents will operate as a waiver, nor will any single or partial exercise of any right or remedy prevent any further or other exercise or the exercise of any other right or remedy. The rights and remedies provided in the Facility Documents or conferred by Applicable Law, common law, custom, trade, or usage, are cumulative and not exclusive of any rights or remedies provided by Applicable Law and may be enforced successively or concurrently.

3.9.2. The Borrower(s)' obligations hereunder will remain in full force and shall not be affected, impaired, diminished or extinguished by any act, omission, default, matter or thing (including anything which, but for this Clause 3.9 would have discharged the Borrower(s) (wholly or in part) or would have afforded the Borrower(s) any legal or equitable defense except the full, prompt and complete performance of all the terms, undertakings and conditions of the Facility Documents, including the due and punctual payment of all amounts that may become due to the Lender under the Facility Documents.

3.10. **Cancellation**: Notwithstanding any other provision in the Facility Documents to the contrary, if by reason of any Applicable Law or regulation or regulatory requirement (whether or not having the force of law) or any change therein or judicial decision relating thereto or the interpretation or administration or application thereof, it shall become (or it shall appear to the Lender that it has or will become) unlawful or otherwise prohibited for the Lender to maintain or give effect to any of its obligations herein, the Lender may by notice to the Borrower(s) cancel and terminate the Credit Facility.

4. CONDITIONS PRECEDENT TO REMITTANCE OF THE SANCTIONED CREDIT FACILITY

4.1. The Borrower(s) agrees and acknowledges that the Sanctioned Credit Facility (after deduction of processing fees and Insurance Payment charges and other charges (if any) etc. (as specified in the KFS) by the Lender) would be disbursed into the Borrower(s)' Bank Account by the Lender, through electronic mode or through cheque/demand draft, as may be decided by the Lender at its sole discretion, subject to compliance of the below mentioned conditions precedent and any conditions as mentioned in any other Facility Document.

4.2. The Sanctioned Credit Facility shall be provided to the Borrower(s) subject to the following conditions being complied with to the satisfaction of the Lender:

(i) the Lender verifying the authenticity and validity of any document(s) submitted by the Borrower(s);

(ii) the Borrower(s) passing the credit evaluation parameters set by the Lender;

(iii) the Borrower(s) being a credit-worthy end user;

(iv) the Borrower(s) completing all KYC requirements as required by the Lender;

(v) all Facility Documents being duly executed and being delivered to the Lender by the Borrower(s);

(vi) the Borrower(s) delivering the post-dated cheques / Electronic Clearing Mandate / Electronic Clearing Service / National Automated Clearing House / standing instructions to the Lender and/or the Service Provider towards repayment of the entire Sanctioned Credit Facility (**"Payment Mandate"**);

(vii) the Borrower(s) delivering the post-dated cheques and/or Electronic Clearing Mandate / Electronic Clearing Service /National Automated Clearing House/ standing instructions at the bank and/or any other electronic or other clearing mandate in favour of the Lender and/or the Service Provider on the Borrower(s)' Bank Account with respect to the Instalments on or before the respective Due Date(s) in respect of the Sanctioned Credit Facility (**"Payment Instructions"**); and

(viii) the Borrower(s) delivering any other document, instrument or writing to the Lender as the Lender may

require in its sole discretion.

4.3. The Borrower(s) shall, forthwith upon the request of the Lender, furnish to the Lender all such details and evidence as the Lender may require concerning the Sanctioned Credit Facility or the Facility Documents or utilization/ drawdown of the amounts under the Sanctioned Credit Facility. The Borrower(s) shall, within the timelines specified in the Facility Documents and if so required by the Lender, provide an end use certificate to the Lender.

4.4. The Borrower(s) agrees that an online request for Disbursement of the Sanctioned Credit Facility is subject to Applicable Law, inherent risks and the policies of the Lender or its affiliates as may be applicable from time to time.

4.5. The Borrower(s) agrees that the online transmission methods referred to in Clause 4.4 above involves the risk of possible unauthorized alteration of data, unauthorized usage of the data for whatever purposes and/ or risks of virus attacks and are susceptible to a number of frauds, misuse and hacking, and are prone to attacks by malicious, destructive or corrupting codes or programmes or macro which could affect the online facility for Disbursement request and the Sanctioned Credit Facility. This could result in delays in the processing of the online Disbursement requests or failure in the processing of such requests and the Lender shall not be responsible for the same. The Borrower(s) exempts the Lender and its affiliates from any and all responsibility/ liability for such misuse of data or virus attacks/ virus transmissions to the Borrower(s)' system and shall not hold the Lender responsible / liable therefor.

4.6. In no event shall the Lender or any its affiliates be liable for any Losses due to improper or unauthorized use or loss of the passwords, login information, data, onetime passwords etc. through any electronic mode and the Borrower(s) shall be solely responsible for the same. Further, the Lender and/or its affiliates shall not be liable for any Losses due to any delay or inability to use the Lender's or its affiliates' website/mobile application or services provided by any electronic mode, the provision of or failure to provide services by the Lender, or for any information, software, products and services obtained online, or otherwise, whether based on contract, negligence, strict liability or otherwise.

4.7. In case of any Event of Default occurring with respect to the payment/ repayment of Outstandings on the relevant Due Dates, the Lender reserves the right to: (i) not disburse any further amounts that have been sanctioned but not drawn down / utilized or disbursed under the Credit Facility; and (ii) immediately recall the Sanctioned Credit Facility and initiate appropriate legal actions against the Borrower(s) for recovering the Outstandings in addition to exercising any other or further rights or remedies available to the Lender under Applicable Law(s).

4.8. **Repayment of the Sanctioned Credit Facility**

(i) The Borrower(s) shall repay the amount of the Sanctioned Credit Facility together with the Interest and charges mentioned in the MITCs (which includes the charge sheet) and the KFS by way of Instalments at such frequency as may be agreed to and mentioned in MITCs in the manner and on the repayment dates/Due Dates as specified in the Repayment Schedule. The Borrower(s) confirms that the Borrower(s) has perused and understood the Lender's method of calculating the Interest and the Fees in relation and as applicable to the Sanctioned Credit Facility as specified in MITCs and the KFS. The Due Date(s) for repayment of the Instalments shall be as indicated in the MITCs and the other Facility Documents.

(ii) All amounts payable by the Borrower(s) to the Lender under Facility Documents shall be paid on or before the relevant Due Date(s) for such payment, without any delay or demur or protest and without any deduction whatsoever by way of set off or counterclaim or otherwise of any amount due or alleged to be due or outstanding from the Lender or any other person and notwithstanding any legal limitation, disability or incapacity of the Borrower(s).

(iii) In case of the Credit Facility, the Parties agree and acknowledge that the repayment terms will be prepared on the assumption that the entire Sanctioned Credit Facility has been utilized.

(iv) The Borrower(s) agrees and acknowledges that the monthly Instalments and the Payment Instruction(s) shall automatically stand increased by reason of increase in the rate of Interest and/or any Fees, rates, taxes, charges, imposts, levies and monies whatsoever that are or may be levied on the Instalments or the transaction contemplated hereunder or may become payable by the Lender by virtue of the terms and conditions under the Facility Documents. Such increase in the Interest, rates, Fees, taxes, charges, imposts, levies and/or monies as stated above shall automatically form part of the Sanctioned Credit Facility.

(v) The Borrower(s) agrees and acknowledges that the Lender shall be entitled to revise/reschedule the

repayment terms (including the rate of Interest in accordance with Clause 3.5 above) at any time and from time to time and other rights as per any policy of the Lender and/ or Applicable Law(s) and regulations, if any, during the Tenure, at its sole discretion, and such revised/rescheduled repayment terms shall be deemed to form part of the Sanctioned Credit Facility with the obligation of the Borrower(s) to make payment in accordance with such revised/rescheduled terms in such manner and within such period as may be determined by the Lender in its sole discretion.

(vi) No notice, reminder or intimation shall be given to the Borrower(s) in respect of the payment of any Instalments prior to the relevant Due Date. It shall entirely and solely be the obligation of the Borrower(s) to ensure prompt and timely payment of the Instalment to the Lender.

(vii) Notwithstanding anything contained herein, the Instalment, the outstanding amount of the Sanctioned Credit Facility, any Outstandings, Interest, Fees and all other sums whatsoever payable by the Borrower(s) to the Lender hereunder and /or in connection with the Sanctioned Credit Facility shall be payable by the Borrower(s) to the Lender on demand by the Lender at any time during the Tenure. The Lender may at any time in its sole discretion and without assigning any reasons call upon the Borrower(s), in writing, to pay the entire Outstandings and upon such demand being made, the Borrower(s) shall, within 5 (five) days of such demand being made, pay the entire amount of the Outstandings to the Lender without any delay, demur or protest.

(viii) The Borrower(s) agrees and acknowledges that the Lender and third parties associated with the Lender shall have the right to seek any additional information as may be required in relation to the Sanctioned Credit Facility and the Borrower(s) acknowledges its obligations to repay the same.

4.9. **Prepayment of Sanctioned Credit Facility**

The Lender shall be entitled to levy and the Borrower(s) shall be liable to pay prepayment charges as mentioned in the Facility Documents on the principal amount of the Sanctioned Credit Facility outstanding as on that date. In such an event, the Lender shall use reducing balancing rate/method for determining the principal amount of the Sanctioned Credit Facility outstanding on the relevant date. Notwithstanding anything to the contrary provided in any Facility Document, no prepayment charges (as may be specified in the Facility Documents) shall be applicable in case of prepayment during the Cooling Off Period.

5. PAYMENT OF INSTALMENTS

5.1. The Borrower(s) shall repay/pay the monies in respect of the Sanctioned Credit Facility through any Payment Instructions or the post-dated cheque(s) (as the Lender may deem fit). The Lender may, in its sole discretion, require the Borrower(s) to adopt or switch to any alternate mode of repayment/payment and the Borrower(s) shall comply with such request, without any demur, delay or protest.

5.2. The payment/repayment of the Instalments shall commence and continue as per the Repayment Schedule. The Borrower shall issue, in favor of the Lender, such Payment Instruction(s)/post-dated cheque(s) as agreed with the Lender towards payment/repayment of the Instalments. The Payment Instruction(s)/post-dated cheque(s) issued by the Borrower(s) in respect of the Sanctioned Credit Facility may also be used by the Lender for any subsequent facility availed by the Borrower(s) from the Lender and all the provisions hereof shall apply *mutatis mutandis*. Wherever required, the Borrower(s) shall issue irrevocable instructions (in a form and substance satisfactory to the Lender) to the Borrower(s)'s bankers to ensure periodic payment to the Lender pursuant to the Payment Instruction(s) issued by the Borrower(s) from the Borrower(s)' Bank Account. The failure of the Borrower(s)' bank(s) for any reason to so transfer any such amounts to the Lender shall tantamount to a failure by the Borrower(s) to pay the amounts and shall constitute an Event of Default. The Borrower(s) shall provide to the Lender a confirmation (in a form and substance satisfactory to the Lender) of the acceptance by the Borrower(s)' bank(s) of the above stated Payment Instruction(s).

5.3. Save and except with the prior written consent of the Lender, the Borrower(s) shall not, under any circumstances, revoke, cancel or alter the Payment Instruction(s) or cancel or issue stop-payment instructions with respect to these Payment Instruction(s) or the post-dated cheque(s) issued or do or omit to do anything which may result in the Borrower(s)' bank(s) not transferring the amounts equal to the Instalments/amounts due under the Facility Documents to the bank account of the Lender on the relevant Due Date. Any attempt to do so shall be considered as an Event of Default.

5.4. If any amounts (not being the principal amount of the Sanctioned Credit Facility or Interest thereon) are outstanding for payment/repayment by the Borrower(s) in terms of the Facility Documents by the Borrower(s) to the Lender, under this Sanctioned Credit Facility, the Lender shall be entitled to encash the Payment Instruction(s) or the post-dated cheque(s) for the satisfaction of such outstanding amounts, notwithstanding that Payment Instruction(s) or the post-dated cheque(s) have been issued for repayment of the principal amount of the Sanctioned Credit Facility and/ or Interest thereon, and the Borrower(s) shall continue to be indebted to the Lender for the Sanctioned Credit Facility and/or Interest, as the case may be.

5.5. All Payment Instruction(s) or post-dated cheque(s) or Payment Mandate(s) issued by the Borrower(s) in favor of the Lender are for the purpose of discharge of the Outstandings that may be due to the Lender by the Borrower(s) under the Facility Documents in relation to the Sanctioned Credit Facility and the same are not proposed to be issued as and by way of a security for any purpose whatsoever. The Payment Instruction(s) or post-dated cheque(s) or Payment Mandate(s) is intended to be used at any time by the Lender as the Lender may consider fit and proper, to recover the Outstandings owed by the Borrower(s) to the Lender, and the Borrower(s), by executing the Application Form and other relevant Facility Documents, has unconditionally and irrevocably authorized the Lender for the same.

5.6. By execution of the relevant Facility Documents, the Borrower(s) has, unconditionally and irrevocably, authorized the Lender to fill one or more of the Payment Instruction(s) or post-dated cheque(s) or Payment Mandate(s) delivered to the Lender for an aggregate amount not exceeding the maximum amount payable by the Borrower(s) to the Lender under the Facility Documents (including those pertaining to any facility subsequently availed by the Borrower(s)) without notice to Borrower(s) in this regard. In the absence of such authority having been given by the Borrower(s) to the Lender, the Lender would not have granted the Sanctioned Credit Facility to the Borrower(s).

5.7. The authority given by the Borrower(s) to the Lender herein to fill in the details of the Payment Instruction(s) or post-dated cheque(s) including the amounts payable is as permitted under the provisions of Section 20 of the Negotiable Instruments Act, 1881 and the same does not amount to a material alteration of the said Payment Instruction(s) or post-dated cheque(s) by the Lender. By execution of the Facility Documents, the Borrower(s) has agreed and confirmed that in the event the acts of the Lender in filling the Payment Instruction(s) or post-dated cheque(s) as aforesaid are construed by any court, tribunal, authority or other person or forum, judicial, quasi-judicial, non-judicial, governmental, semi-governmental or non-governmental, to be an alteration within the meaning of the Negotiable Instruments Act, 1881:

(i) the Borrower(s) has provided the Borrower(s)' consent for such an alteration and that by reason of such alteration, Payment Instruction(s) or post-dated cheque(s) shall/should not be construed to be void or otherwise unenforceable and the Borrower(s) has agreed and accepted to honor such Payment Instruction(s) or post-dated cheque(s) when presented for payment; and

(ii) the Borrower(s) has confirmed that such alteration is made to record the common intention of the Lender and Borrower(s), which common intention is to fill in the Payment Instruction(s) or post-dated cheque(s) with the amounts due by the Borrower(s) to the Lender and to present the same for payment on such dates as the Lender may, in its absolute and sole discretion, decide.

5.8. The Borrower(s) hereby unconditionally and irrevocably covenants that at no point during the Tenure of the Credit Facility shall the Borrower(s) claim that any Payment Instruction(s) and/or the Payment Mandate(s) is invalid due to any reason whatsoever. The Borrower(s) further confirms that the Borrower(s) shall ensure availability of funds in the Borrower(s)' Bank Account in respect of which the Payment Instruction(s) has been made and that the Borrower(s) will not at any time close the Borrower(s)' Bank Account(s) and/or issue any notice instructing the Lender not to present any such Payment Instruction(s) towards repayment of any Instalments. It is the duty of the Borrower(s) to ensure that the Borrower(s)' Bank Account(s) is debited towards every Instalment and in case of such debit not occurring, the Borrower(s) shall inform the Lender in this regard within 3 (three) days from the Due Date of such Instalment.

5.9. Notwithstanding anything contained in the Facility Documents, and irrespective of the mode of payment selected by the Borrower(s) in the Facility Documents, upon any default by the Borrower(s) in payment of one or more Instalments on a Due Date pertaining to the Sanctioned Credit Facility or any non-realization of the Instalments on a Due Date by the Lender, the Lender shall be entitled, without prejudice to its other rights and remedies under the Facility Documents and Applicable Law(s), to present and/or re-present the Payment Instructions(s) and/or post-dated cheque(s) and/or Payment Mandate(s), if any, issued by the Borrower(s) in favor of the Lender in connection with the Sanctioned Credit Facility. Irrespective of the mode of payment/date of payment selected by the

Borrower(s) in the Facility Documents, the Lender shall be entitled to require the payment and/or collection of the Instalments and all other amounts comprising the Outstandings, by any other Payment Instruction(s) and/or post-dated cheque(s) and/or Payment Mandate(s), if any, issued by the Borrower(s) in favor of the Lender or utilizing any other mode or manner of payment or repayment of the Instalments and all other amounts comprising the Outstandings.

5.10. The Lender shall be entitled to adjust the advance Instalment and/or security deposit/ initial payment, if applicable, made by the Borrower(s) and as more specifically described in MITCs towards the Outstandings in such manner and at such time as the Lender may determine fit, in its sole discretion.

5.11. Notwithstanding the mode of repayment/payment selected by the Borrower(s) in the Facility Documents, the Borrower(s) shall continue to remain, at all times, liable and responsible for ensuring the payment/repayment of all Instalments, Outstandings and all other monies due from the Borrower(s) in respect of the Sanctioned Credit Facility to the Lender on or before the relevant Due Date without any further notice/intimation being given by the Lender and all such amounts payable by the Borrower(s) to the Lender shall be paid as Lender may specify, without any deductions whatsoever so as to enable the Lender to fully realize the amount due and/or the Outstandings on or before the respective Due Date(s).

5.12. Any dishonor of any post-dated cheque(s) or any Payment Instruction(s) or Payment Mandate(s), would constitute an offence under Section 138 of the Negotiable Instruments Act, 1881 or Section 25 of the Payment and Settlement Systems Act, 2007, as the case maybe.

5.13. **Payment Waterfall**

Notwithstanding any of the provisions of the Indian Contract Act, 1872 or any other Applicable Law(s), or any terms and conditions to the contrary contained in the Facility Documents, any payment by the Borrower(s) shall, unless otherwise agreed to by the Lender in writing, be appropriated in the following manner:

(i) Interest due and payable and/or becoming due and payable to the Lender;
(ii) Interest tax (if applicable);
(iii) payment/ repayment of the principal currently due and payable or becoming due and payable to the Lender;
(iv) Costs, charges, expenses, and other monies, due and payable to the Lender; and
(v) any prepayment charges and Fees.

Provided, that, the Lender reserves the right to appropriate the monies received in any other manner as it may deem appropriate in its sole and absolute discretion.

5.14. The Lender shall discharge the Borrower(s) of his/her obligation to make payments in relation to the Sanctioned Credit Facility only upon realization of all amounts due and payable by the Borrower(s) to the Lender.

5.15. **General**

5.15.1. The Borrower(s) is not entitled to any refund of any interest, Fees or charge that the Borrower(s) has paid to the Lender.

5.15.2. The Borrower(s) acknowledges that the Credit Facility provided under the Facility Documents is for a commercial transaction and waives any defenses available under usury or other Applicable Laws relating to the charging of Interest.

6. REPRESENTATION, WARRANTIES, COVENANTS AND UNDERTAKINGS OF THE BORROWER(S)

6.1. **Representations and Warranties**

The Borrower(s) hereby represents and warrants to the Lender that:

(i) all information provided by the Borrower(s) for the purpose of the Facility Documents and any other information pursuant to the foregoing is true, complete, accurate and correct in all material respect as on the date on which such information is dated or certified or shared with the Lender and are not misleading;

(ii) the :(A) Borrower(s) is an adult and is of sound mind and has the capacity to and is entitled to enter into the Facility Documents, (B) the execution of the Facility Documents by the Borrower(s) shall not conflict with any other obligation of the Borrower(s) whether under Applicable Law(s) or owed to any other person , and

(C) obligations expressed to be assumed by the Borrower under each of the Facility Documents are legal, valid, binding and enforceable;

(iii) no event or circumstance is outstanding which constitutes an Event of Default under any agreement or instrument which is binding on the Borrower or to which the assets of the Borrower are subject to and no demand/default notice under any Applicable Law(s) and/or any agreement or contract applicable to the Borrower(s) has been issued to the Borrower(s);

(iv) the Borrower(s): (A) is in compliance with all, and has not breached any, Applicable Law; and (B) neither knows nor has reasons to believe that he/she is a Sanctioned Person or may become subject of sanctions-related investigations or juridical proceedings;

(v) the Borrower(s) is neither insolvent/ bankrupt nor has admitted his/her inability to repay any amount payable by it to any person;

(vi) the Borrower(s) has/have not been identified as a willful defaulter by any scheduled commercial bank, financial institution, the RBI or any other Governmental Authority;

(vii) the Borrower: (A) has generally complied in all respects with all Tax laws in all jurisdictions in which he/she is subject to Tax, has filed all Tax returns and paid all Taxes and statutory dues due and payable by him/her; (B) has made himself/herself aware of all Tax implications and his/her reporting and disclosure obligations relating to his/her execution, delivery and performance of the transactions contemplated by the Facility Documents and has complied with and will comply with all reporting, disclosure, taxation, exchange control, legal and regulatory requirements applicable to him/her in relation thereto;

(viii) the Borrower(s) is/are not a politically exposed person (**PEP**). PEP are individuals who are or have been entrusted with prominent public functions in a foreign country including the heads of States/Governments, senior politicians, senior government or judicial or military officers, senior executives of state-owned corporations and important political party officials; and

(ix) there are no pending litigations, arbitrations or other proceedings filed against the Borrower(s), which could affect the financial position of the Borrower(s).

The representations and warranties set out in this Clause 6.1 are true, correct and accurate and are not misleading as on the Effective Date and shall remain true, correct, accurate and not misleading on each day till the entire Outstandings is repaid in full to the Lender, to the satisfaction of the Lender.

6.2. **General Covenants and Undertakings**

Till such time as the entire Outstandings is paid in full to the Lender, to the satisfaction of the Lender, the Borrower(s) shall:

(i) duly and punctually comply with all the terms and conditions set out in the Facility Documents;

(ii) comply with all Applicable Law(s) and shall stay updated with any changes thereto;

(iii) furnish such other information to the Lender or a third party acting on the instructions of the Lender, as may be deemed appropriate by them from time to time;

(iv) not leave India for employment purposes or for extended periods without first fully repaying the Outstandings in full to the Lender;

(v) promptly inform the Lender of the occurrence of any event which is likely to render any of the representations and warranties as set out in the Facility Documents untrue or invalid;

(vi) promptly inform the Lender of the occurrence of any potential Event of Default or Event of Default and of the steps being taken to remedy the same by the Borrower(s) and, from time to time, if so requested by the Lender, the Borrower(s) shall confirm to the Lender in writing that save as otherwise stated in such confirmation, no Event of Default has occurred and/or is continuing and/or is anticipated;

(vii) promptly inform the Lender in case any demand/default notice under any Applicable Law(s) and/or any agreement or contract applicable to the Borrower(s) has been issued to the Borrower(s);

(viii) not use the Sanctioned Credit Facility for any unlawful or antisocial purposes and confine the use of the same to the Purpose;

(ix) do all such things and execute all such writings as the Lender may require from time to time for duly or more perfectly securing the repayment of the Sanctioned Credit Facility;

(x) ensure that all payments made by the Borrower(s) to the Lender are in compliance with all Applicable Laws and in particular, such payments are not subject to any clawbacks on account of preference, undervalue or any similar grounds under the Provincial Insolvency Act, 1920 or the Presidency-Towns Insolvency Act, 1909 or the Insolvency and Bankruptcy Code, 2016 or any other analogous law or regulation;

(xi) (A) comply with all Anti-Financial Crime Laws during the continuance of this Credit Facility; (B) not undertake any act which may be deemed as money laundering under any Applicable Law (including the Anti-Financial Crime Laws); (C) not enter into any agreement with any Sanctioned Person;

(xii) not (A) close or issue any instructions for the closure of the Borrower(s)' Bank Account without the prior written consent of the Lender, or (B) commit or omit to do any act, agreement or thing which may entitle its bank to close or suspend the Borrower(s)' Bank Account(s);

(xiii) if any post-dated cheque delivered to the Lender by the Borrower(s) pursuant to the Facility Documents:

(a) is lost, destroyed or misplaced while in the custody of the Lender; or

(b) becomes non encashable due to the death, insolvency, lunacy of the Borrower(s) or expiry of validity thereof or as a result of a liquidation of or any moratorium on the drawee bank or for any other reason whatsoever,

then in any of such events, the Borrower(s) shall, within 3 (three) days of intimation in this regard by the Lender, deliver to the Lender such number of cheques in such manner as required by the Lender, to replace such post-dated cheques;

(xiv) promptly inform the Lender of the circumstances and conditions which are reasonably likely to have a Material Adverse Effect on the performance of its obligations under the Facility Documents, with an explanation of the reasons therefor;

(xv) promptly provide notice to the Lender of the occurrence of any event which it becomes aware of and which might adversely affect its ability to perform its obligations under the Facility Documents and/or the enforceability of the Facility Documents and/or the rights and remedies available to the Lender under the Facility Documents or otherwise;

(xvi) promptly provide notice to the Lender of any legal or other proceedings initiated or threatened or meeting convened, proposed or held or any other steps taken or proposed for its bankruptcy or insolvency; and

(xvii) promptly notify the Lender if it has been identified as a willful defaulter by any scheduled commercial bank, financial institution, the RBI or any other Governmental Authority.

7. EVENTS OF DEFAULT AND CONSEQUENCES

7.1. Events of Default

(i) *Failure to Pay*

The Borrower(s) does not pay to the Lender on the relevant Due Date, any amount payable by it pursuant to the Facility Documents (including, without limitation, any Instalments or Fees) strictly in the manner in which it is expressed to be payable under the Facility Documents.

(ii) *Contractual Breach*

Any breach of a covenant, undertaking or any other obligation by the Borrower(s) under the Facility Documents and the same has not been remedied within three (3) days from the date of receipt of notice in respect thereof issued by the Lender, provided that such breach is not in relation to any payment obligations of the Borrower(s).

(iii) *Misrepresentation*

Any representation, warranty or statement made by the Borrower(s) in the Facility Documents and/or or in any document delivered by or on behalf of the Borrower(s) under or in connection with the Sanctioned Credit Facility is or proves to have been incorrect or misleading in any respect when made.

(iv) *Cross Default*

(a) If any indebtedness of the Borrower(s) is not paid when due nor within any originally applicable grace period.

(b) If any indebtedness of the Borrower(s) is declared to be or otherwise becomes due and payable or any creditor becomes entitled to declare any indebtedness of the Borrower(s) due and payable, prior to its specified maturity or as a result of an Event of Default or termination event (in either case, however described).

(c) If any commitment for any indebtedness of the Borrower(s) is cancelled or suspended by any creditor as a result of an Event of Default or termination event (in either case, however described).

(v) *Bankruptcy and Bankruptcy Proceedings*

Any of the following event occurs: (i) the Borrower ceases to be solvent or is unable to or is deemed by law to be unable to or admits his/her inability to, pay his/her debts as they fall due, suspends making payments on any of his/her debts or, by reason of actual financial difficulties, commences negotiations with one or more of his/her creditors with a view to rescheduling any of his/her indebtedness; and (ii) any action, legal proceedings or other procedure or step is taken in relation to: (a) the suspension of payments or a moratorium of any indebtedness of the Borrower, (b) the initiation of a bankruptcy process or a fresh start process or any other similar process under Applicable Laws, and (c) enforcement of any security over any assets of the Borrower, or any analogous procedure or step is taken in any jurisdiction.

(vi) *Material Adverse Effect*

Any event or circumstance occurs or might in the opinion of the Lender be expected to occur, or any legal proceedings, suit or action of any kind whatsoever (whether criminal or civil) is instituted or pending against the Borrower, whether in India or elsewhere which in the opinion of the Lender could have a Material Adverse Effect.

(vii) *Material Litigation*

Any litigation, whether current or pending which, in the opinion of the Lender, restrains the Borrower(s) in complying with any of his/her/their obligations under the Facility Documents.

(viii) *Unlawfulness*

It is or becomes unlawful for the Borrower(s) or the Lender to perform any of their respective obligations under the Facility Documents or any such obligation is not or ceases to be legal, valid, binding or enforceable.

(ix) *Repudiation*

The Borrower(s) repudiates the Facility Documents or evidences an intention to repudiate the Facility Documents or any of Borrower(s)' obligations in the Facility Documents is found to be illegal, invalid or unenforceable.

(x) *Fraud*

The Borrower(s) acts fraudulently or dishonestly or the Borrower is convicted of a crime or legal proceedings to recover debts or any criminal proceedings are commenced against the Borrower.

(xi) *Facility Documents*

The Facility Documents are not (once entered into), or cease to be, in full force and effect.

(xii) *Payment Instruction(s) or Payment Mandate(s)*

Save and except with the prior written consent of the Lender, the Borrower revokes, cancels or alters the Payment Instruction(s) or Payment Mandate(s), if any, or cancel or issue stop-payment instructions with respect to the Payment Instruction(s) or the post-dated cheque(s), if any, issued.

(xiii) *Other Events*

(a) The Borrower(s) dies, becomes of unsound mind or is placed under custody.
(b) The Borrower(s) becomes insolvent/bankrupt or compounds with his/her/their creditors or permits any attachment or sequestrations or any other process against any of his assets or properties.
(c) There exists any circumstance which, in the sole opinion of the Lender, jeopardizes the Lender's interest in relation to the Sanctioned Credit Facility.
(d) The failure of the Borrower's bank for any reason to transfer the amount as per the Payment Instruction(s) and/or Payment Mandate(s) and/or the Facility Documents.
(e) The Borrower(s) current address verification process could not be successfully completed/concluded by the Lender within the time-period specified in the Facility Documents, for any reasons whatsoever, including due to delivery failure of the address verification letter issued by the Lender on the current address of the Borrower(s).

7.2. **Consequences of an Event of Default**

Upon occurrence of an Event of Default, the Lender shall have the following rights:

(i) to declare the Outstandings to be immediately due and payable, which amounts shall become forthwith due and payable;

(ii) to encash the post-dated cheques and/or utilize the Payment Instruction(s) and/or the Payment Mandate(s) towards repayment of the Outstandings until the same is entirely paid to the Lender. In this case, the Lender shall be entitled to initiate legal proceedings including, without limitation, those under Section 138 of the Negotiable Instruments Act, 1881or Section 25 of the Payment and Settlement Systems Act, 2007, as the case maybe;

(iii) to publish a public notice, including with the national newspapers, local magazines and social media sites, declaring the occurrence of an Event of Default and publishing the name and photograph of the Borrower(s);

(iv) to stipulate such other conditions or amend any terms of the Facility Documents as the Lender considers necessary;

(v) to disclose details of the Event(s) of Default to CIBIL and/ or any other agency authorized in this behalf by RBI or any other authority; and/or

(vi) to exercise such other rights and remedies as are available to the Lender under Applicable Law(s) or the Facility Documents.

The above rights are cumulative rights and are not to the exclusion of each other or any other right of the Lender. The Lender shall be entitled to enforce all or some of the rights above and in such order/sequence as it so desires and in such manner that the Lender may deem fit in its sole discretion.

8. STATEMENT

8.1. Any statement of account furnished by the Lender regarding the balance amount due and payable by the Borrower(s) under the Facility Documents shall be accepted by and be binding on the Borrower(s) and shall be conclusive proof of the correctness of the amount mentioned therein. Without prejudice to what is stated above, if the Borrower(s) desires to question any statement of account or any part thereof, the Borrower(s) shall furnish to the Lender full details of the same within 15 (fifteen) days of the receipt of the statement of account by the Borrower(s) and the Lender may consider the same. The Borrower(s) shall not be entitled to object to the relevant statement of account after the expiry of the aforesaid period on any ground whatsoever. Notwithstanding what is stated above, any objection to the statement of account by the Borrower(s) shall not relieve the Borrower(s) of his/her/their obligation to make payments due and payable to the Lender in accordance with the terms of the Facility Documents.

8.2. The Lender may cancel, reverse or debit any payment the Lender makes under the Facility Documents (including any interest paid) and make any corresponding adjustments to an account (i) to correct a mistake; (ii) where the Lender has not received cleared and unconditional funds in full or promptly; (iii) where the Lender is required to return the funds to the relevant payer or drawer; or (iv) where the Lender has reasonable grounds for doing so.

8.3. The Borrower(s) acknowledges that the Lender may destroy, erase or otherwise cease to maintain any records (whether in paper, electronic data or other form) as the Lender may consider appropriate after such time as permitted by Applicable Law(s). However, the Borrower(s) acknowledges and agrees that, subject to Applicable Law(s), the Borrower(s) shall have no right to require the Lender to delete or erase or cease to maintain any such record and the Borrower(s) hereby unconditionally and irrevocably waives any such right available to it under Applicable Law(s).

9. DISCHARGE

9.1. Upon the receipt and realization of the entire amount of the Outstandings from the Borrower(s), to the satisfaction of the Lender and which shall be confirmed by the Lender, the Borrower(s) shall be discharged of its obligations under the Facility Documents.

10. INDEMNITY

10.1. The Borrower(s) hereby indemnifies and agrees to indemnify and hold harmless the Lender and its affiliates and their directors, officers, employees, agents, nominees and correspondents (past, future and present) for any damages, costs, expenses, losses or liabilities (direct, indirect or consequential), claims, demands, actions, suits, proceedings, orders, damages, costs and expenses (including all duties, taxes and other levies, interest, service charges and legal costs on a full indemnity basis) and any and all other liabilities of whatsoever nature or description howsoever arising, suffered or incurred by the Lender as a result of:

(i) any misrepresentation or breach of any representation or warranty of the Borrower(s);

(ii) any breach by the Borrower(s) of any of his/her/their obligations under the Facility Documents or any document executed pursuant hereto;

(iii) the Lender enforcing or attempting to enforce any rights it may have against the Borrower(s) pursuant to the Facility Documents;

(iv) an Event of Default; and/or

(v) any default committed by the Borrower(s) in payment of any amount when due in respect of the Sanctioned Credit Facility.

10.2. Each of the indemnities in the Facility Documents constitute a separate and independent obligation from the other obligations of the Borrower(s) under any of the Facility Documents or otherwise and shall give rise to a separate and independent cause of action, apply irrespective of any indulgence granted by the Lender, and continue in full force and effect despite any judgment, order, claim or proof for a liquidated amount in respect of any sum due hereunder or under any judgment or order.

11. LENDER'S RIGHT TO DISCONTINUE AND TERMINATION

11.1. The Lender reserves its rights to cancel or discontinue the Sanctioned Credit Facility (either wholly or in part) or withhold any disbursements unconditionally and without giving any notice thereof at any time, in the event of:

(i) non-compliance by the Borrower(s) with any terms and conditions of the Facility Documents;

(ii) any deterioration in the creditworthiness of the Borrower(s);

(iii) the Borrower(s) not conducting any transactions for an extended period, the duration of such period to be determined by the Lender from time to time in its sole discretion;

(iv) the Lender not being able to apply or adhere to appropriate client due diligence measures (i.e. the Lender is unable to verify the identity and/or obtain documents required due to non-cooperation of the Borrower(s) or the data/information furnished to the Lender is not reliable or for any other reason);

(v) the Borrower(s) current address (as provided under the Facility Documents) verification could not be successfully concluded/completed by the Lender, for any reasons whatsoever, including due to delivery failure of the address verification letter issued by the Lender on the current address of the Borrower(s); and/or

(vi) for any reason or in any manner whatsoever or as per the Lender's discretion, from time to time.

11.2. Notwithstanding anything to the contrary in the Facility Documents, the Facility Documents may also be terminated (i) by mutual consent of the Parties; (ii) upon suspension or cancellation of the registration of the Lender (if any); or (iii) upon bankruptcy, insolvency, winding-up or liquidation of the Lender.

11.3. The termination of the Sanctioned Credit Facility shall not affect the validity of the Facility Documents and any of the rights, liabilities and obligations of either Party which arose prior to termination (other than the liabilities and obligations of the Lender which, for the avoidance of doubt, shall stand discharged). All provisions in the Facility Documents in connection with clawbacks, indemnities, limitation of liability, disclosure of information, tax, and the provisions relating to enforcement, governing law, and confidentiality shall survive termination of the Facility Documents by the Lender.

12. SET-OFF

The Borrower(s) agrees and confirms that the Lender shall be entitled in its sole discretion (but not obliged to), without prior notice to the Borrower(s) and without in any way affecting the Facility Documents, to (i) set-off any obligation due from the Lender under the Facility Documents against any obligation owed by the Lender to the Borrower(s) (whether or not matured), regardless of the place of payment or booking branch; and (ii) appropriate any payments as made by the Borrower(s) under or pursuant to the Facility Documents towards any other indebtedness or monies due to the Lender, and such appropriation shall be final and binding upon the Borrower(s) who shall continue to remain liable to the Lender for payment of dues under the Facility Documents in respect of which such sums of money were so paid but were appropriated in accordance with the foregoing.

13. GOVERNING LAW AND JURISDICTION

13.1. Governing Law

The Facility Documents shall be governed by the laws of India.

13.2. Jurisdiction

(i) The Facility Documents shall be governed by and construed in accordance with the laws of India. Both Parties agree that if any dispute(s) or difference(s) shall arise between the Parties in connection with or arising out of or relating to the Facility Documents, the Parties shall attempt, for a period of 30 (thirty) days from the receipt of a notice ("**Disputes Notice**") from the other Party of the existence of a dispute(s), to settle such dispute(s) by mutual discussions. If the said dispute(s) cannot be settled by mutual discussions within the 30 (thirty) day period specified above, such disputes(s) shall be referred to arbitration for final resolution in the manner provided herein.

(i) The Parties shall mutually appoint a sole arbitrator within 60 (sixty) days from the date of the Disputes Notice who shall resolve such dispute(s) in accordance with the provisions of the Arbitration and Conciliation Act, 1996, as amended from time to time ("**Arbitration Act**").

(ii) In the event the Parties fail to appoint a sole arbitrator in accordance with the aforesaid procedure and within

the time period as specified above, such sole arbitrator shall be appointed in accordance with the provisions of the Arbitration Act.

(iii) The arbitration proceedings shall be held in English language and the seat of arbitration would be in New Delhi. Subject to the provisions set out above, the courts at Delhi shall have the exclusive jurisdiction over any dispute(s) as described above.

13.3. **Consent to Enforcement**

The Borrower(s) irrevocably and generally consents in respect of any proceedings anywhere in connection with the Facility Documents to the giving of any relief or the issue of any process in connection with those proceedings including, without limitation, the making, enforcement or execution against any assets whatsoever (irrespective of their use or intended use) of any order or judgment which may be made or given in those proceedings.

14. COLLECTION, PROCESSING, DISCLOSURE AND USE OF PERSONAL INFORMATION

14.1. The Borrower unconditionally agrees, acknowledges and permits the Lender and any of its officers, directors or representatives to collect, process and/or disclose any information and documents with respect to the Borrower (including sensitive personal information) and/or the Borrower's financial condition, the Credit Facility and/or the Facility Documents and/or any other agreement(s) between the Lender and the Borrower and/or any data obtained by the Lender about the Borrower from any credit information agencies, any third party or from available sources (all borrower information and such other information, collectively, the "**Borrower Information**"): (i) for statistical analysis; (ii) to develop, introduce and improve products and/or services; (iii) to update records; (iv) to identify which products and/or services might interest the Borrower; (v) to assess lending and insurance risks; (vi) to arrange, underwrite and administer insurance and handle claims; (vii) to identify, prevent, detect or tackle fraud, money laundering and other crimes; (viii) to carry out regulatory checks; (ix) to keep the Borrower informed about the credit facility (including the Sanctioned Credit Facility); (x) for market research; (xi) to keep the Borrower informed about the products and services which the Lender and their affiliates offer to third parties; (xii) for carrying out day-to-day operation in relation to the Sanctioned Credit Facility (including, but not limited to, for verifying, authenticating and authorising the use of the Sanctioned Credit Facility, for processing payments in relation to the Sanctioned Credit Facility) and for ensuring ongoing credit worthiness of the Borrower; (xiii) for determining the amount of indebtedness owed by the Borrower to the Lender; (xiv) for commencing, defending or otherwise participating in any legal or administrative proceedings or inquiry before any court, tribunal or competent authority; (xv) for protecting the business of the Lender and for compliance by the Lender with Applicable Law and other obligations of the Lender; (xvi) for any purposes in connection with any claims made by or against or otherwise involving the Borrower or other third party in respect of any credit facility provided by the Lender including to make, defend, analyse, investigate, process, assess, determine or respond to such claims, and whether such claims are before a court, arbitral tribunal, other competent authority or otherwise; (xvii) for performing any functions and activities related to the Sanctioned Credit Facility including to audit, report (including analyses and materials and information generally in relation to investments and markets) and carry out general servicing and maintenance of online and other services, undertake risk assessment and analysis; (xviii) to generate variables, affluence and reliability scores of the Borrower; (xix) for complying with the terms and conditions of any transaction entered into by the Borrower and for maintaining relationship with the Borrower; and (xx) any purpose directly or indirectly related to any of the above.

14.2. Such Borrower Information may also be shared by the Lender with its affiliates, group entities and any other third parties. Subject to the above, the Lender shall make reasonable endeavors to ensure that the Borrower Information remains confidential and use or disclose such Borrower Information for the purposes explained above and as set out in the privacy policy of the Lender.

14.3. The Borrower hereby confirms that he/she has been informed of and provides unconditional consent to the sharing of the Borrower Information by the Lender to its affiliates and otherwise, as described above, for the purposes set out in Clause 14.1 above.

15. DISCLOSURES BY THE LENDER

15.1. The Lender shall, as it may deem appropriate and necessary, be entitled to collect, process and/or disclose all or any:

(i) information and data relating to the Borrower(s);

(ii) information or data relating to the Sanctioned Credit Facility and the terms thereof;

(iii) Obligations assumed/ to be assumed by the Borrower(s) in relation to the Sanctioned Credit Facility under the Facility Documents; and

(iv) Event of Default committed by the Borrower(s),

to the TransUnion Credit Information Bureau (India) Limited ("**CIBIL**") and any other agency authorized in these regards by the RBI. CIBIL and/or any other agency so authorized may use and/or process the aforesaid information and data disclosed by the Lender in any manner as deemed fit. If the Borrower defaults in his/her obligations under the Facility Documents, then the Lender and/or the RBI will have an unqualified right to disclose or publish the details of such default and the name of the Borrower as the case may be, as defaulters, in such manner and through such medium as the Lender or the RBI thinks fit. CIBIL and/or any other agency so authorized may furnish for consideration, the processed information and data or products thereof prepared by them, to the Lender/ financial institutions and other credit grantors or registered users, as may be specified by RBI in these regards.

15.2. The Borrower understands that in accordance with the Reserve Bank of India (Know Your Customer (KYC)) Directions, 2016, the Prevention of Money Laundering Act, 2002, the Insolvency and Bankruptcy Code, 2016 and rules notified thereunder and any other Applicable Law, the Lender may be required to upload information and data relating to the Borrower on the system of KYC Registration Agency, Central KYC Registry, information utilities and/or such other agencies/bodies ("**Verification Authorities**") as may be notified by Governmental Authorities from time to time (including but not limited to the Securities and Exchange Board of India, the RBI, Financial Intelligence Unit of India). Accordingly, the Borrower agrees and gives consent to the Lender to disclose and provide such information to the Verification Authorities.

15.3. The Borrower acknowledge that he/she has the option of not providing information or document required by the Lender or withdrawing any consent provided pursuant to any Facility Document, or restrict disclosures to third parties other than Governmental Authorities and other banks, financial institutions and regulated entities. However, in these circumstances, the Borrower acknowledges that the Lender shall have the right not to provide, or discontinue providing, the Sanctioned Credit Facility to the Borrower. The Borrower also agree that any withdrawal of the consents as provided by the Borrower pursuant to any Facility Document shall not be effective and operational unless communicated by the Borrower to the Lender in writing in accordance with the terms of the Facility Documents and with at least 15 (fifteen) Business Days' prior notice.

15.4. The Borrower accepts and acknowledges that the Lender may disclose the Borrower Information to any Governmental Authorities notwithstanding that the recipient's place of business is outside India or that such information following disclosure will be collected, held, processed or used by such recipient in whole or in part outside India where there may not be in place data protection and confidentiality laws which are substantially similar to, or serve the same purpose as, the data laws and banking confidentiality in India. This means that, to the extent permitted by Applicable Laws, the information may not be protected to the same or similar level as in India.

15.5. The Borrower accepts and acknowledges that the Lender are not under an obligation to delete or erase any Borrower Information, whether specifically requested for by the Borrower or not, at any time during the term of the Sanctioned Credit Facility or at the end of the Tenure and the Borrower hereby unconditionally and irrevocably waives any such right available to the Borrower under Applicable Laws.

15.6. The Lender confirms that the Borrower Information shall be used or disclosed for the purposes set out in the Facility Documents and as set out in the privacy policy of the Lender available at https://payufin.in/privacy-policy.

15.7. Clause 14 and Clause 15 are in addition to any previous or future confidentiality undertaking given or that may be given by the Borrower in connection with the Facility Documents or otherwise prior to the Borrower becoming or after the Borrower becomes a Party, as the case may be.

16. MISCELLANEOUS

16.1. Acknowledgment

The Borrower(s) acknowledges that the Borrower(s) has carefully read and understood the terms and conditions of the Facility Documents before executing the same. The Borrower(s) agrees that the Borrower(s) shall be deemed to have read, understood and accepted the terms and conditions of the Facility Documents upon execution of the

Facility Documents by the Borrower(s). The Borrower(s) acknowledges that the Borrower(s) has taken independent advice in respect on the Facility Documents so as to fully understand the consequences and implications of the terms and conditions of the Facility Documents.

A copy of the Facility Documents has been delivered to the Borrower(s) and the Borrower(s) confirms the receipt of the same.

16.2. **Applicability of Consumer Protection Act, 2019**

The Borrower(s) expressly agrees and acknowledges that the Facility Documents are entered into in respect of a financing transaction giving rise to a relationship of debtor and creditor as between the Borrower(s) and the Lender, and not in respect of any service rendered / to be rendered by the Lender to the Borrower(s). Accordingly, the provisions of the Consumer Protection Act, 2019, as amended from time to time, shall not apply to the transaction forming the subject matter of the Facility Documents.

16.3. **Notice**

(i) Any notice to be given to the Borrower(s) in respect of or pursuant to or under the Facility Documents shall be deemed to have been validly given if served on the Borrower(s) in person or sent by registered post to or left at the address of the Borrower(s) existing or last known to the Lender or an electronic mail sent by the Lender at the email address provided by the Borrower(s).

(ii) Any notice sent by:

(a) registered post shall be deemed to have been received by the Borrower(s) within seven days from the time of its posting;

(b) personal delivery shall be deemed to have been received by the Borrower(s) when delivered to the Borrower(s);

(c) electronic mail shall be deemed to have been received by the Borrower(s) when transmitted by the Lender.

16.4. **Severability**

The Borrower(s) agrees and acknowledges that each of his/her/their obligations under the Facility Documents is independent and severable from the rest. If any obligation is found to be not enforceable by a competent court of law or tribunal, for any reason, the Borrower(s) shall continue to remain bound by the other obligations stipulated herein. In such event, the Lender shall have the right to amend the terms of the Facility Documents such that the commercial intent of the Facility Documents and the interests of the Lender are protected in the same manner as originally contemplated under the Facility Documents.

16.5. **Reasonability**

The Borrower(s) acknowledges that the Interest, Fees and other charges payable and or agreed to be paid by the Borrower(s) under the Facility Documents are reasonable and acceptable to the Borrower(s).

16.6. **Enforcement and Stamp Duty**

In the event of any enforcement of the Facility Documents by the Lender against the Borrower(s), any stamp duty payable on the Facility Documents (including pursuant to any compounding) shall be payable by the Borrower(s). The Lender shall be entitled to recover from the Borrower(s) the amount of such stamp duty and any other charges or costs incurred or claims suffered by the Lender in connection with the enforcement of the Facility Documents.

16.7. **Agents of the Lender**

The Lender, in its sole discretion, may appoint agents or third parties for administration, document collection, disbursement of the Sanctioned Credit Facility and/or for the purposes of collection of repayment amount. In this case, the Lender will assign in favor of such agents such rights and duties as may be decided by the Lender including,

but not limited to, issuing notices and collecting repayment amount. The Borrower(s) agrees and shall cooperate with such agents in the same manner as it would with the Lender in terms of the Facility Documents.

16.8. **Change in terms and conditions**

The Lender shall make reasonable endeavors to give notice to the Borrower(s) of any change in the terms and conditions of the Facility Documents, including but not limited to, in relation to disbursement schedule, Interest and/or Fees. The Lender shall ensure that any changes in the rate of Interest and Fees are effected only prospectively. The Borrower(s) shall be bound by any aforesaid change and shall not dispute the same.

16.9. **Other Remedies**

Nothing contained in the Facility Documents shall be construed as extinguishing, limiting or ousting the rights and remedies of the Lender, if available now or in the future as against the Borrower(s) under any Applicable Law(s), and the Lender shall stand absolutely entitled to exercise such rights/ remedies thereunder, irrespective of the initiation, pendency, or continuation of other proceedings.

16.10. **Fair Practices Code**

The Lender state and declare that as per the requirement of the RBI, the Lender has framed a fair practices code. The same is displayed at the Lender's office and on its website and can be inspected by the Borrower(s).

16.11. **Confidentiality**

16.11.1. The Borrower shall, except to the extent required under Applicable Law, maintain complete confidentiality about the matters concerning the Facility Documents.

16.11.2. The Borrower acknowledges that, pursuant to the Facility Documents or any transactions contemplated herein, the Lender will be in receipt of Borrower's sensitive personal information from time to time. For the protection of such sensitive personal information from unauthorised access, use, modification, damage, disclosure or impairment, the Lender has implemented information security practices and standards and has in place comprehensively documented information security programmes and policies containing managerial, technical, operational and physical security measures that are in compliance with the Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011. The Borrower acknowledges and confirms that the Lender's security practices and procedures are adequate and reasonable and are designed to protect personal information (including sensitive personal information) provided by or on behalf of the Borrower to the Lender.

16.11.3. The Borrower acknowledges that the consent provided by the Borrower in relation to the Borrower Information under Clause 14 and Clause 15 shall be in addition to, and not in derogation of, the provisions of the KFS, the MITCs and any other Facility Documents and privacy policy of the Lender available at https://payufin.in/privacy-policy.

16.11.4. The Borrower also acknowledges that as the security practices and procedures of the Lender are consistently evolving and shall continue to so evolve (including for the purposes of complying with any changes or amendments to the Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011), the Lender shall have the right to change or replace the security practices and procedures from time to time at its sole discretion.

16.11.5. The Facility Documents does not, and shall not be deemed to constitute, an express or implied agreement by the Lender with the Borrower for a higher degree of confidentiality than that prescribed under the Applicable Laws. The rights conferred on the Lender in this Clause 16.11(*Confidentiality*) shall be in addition to and shall not be in any way prejudiced or affected by any other agreement, expressed or implied, between the Lender and the Borrower in relation to any personal information (including sensitive personal information) nor shall any such other agreement be in any way prejudiced and/or affected by this Clause 16.11 (*Confidentiality*).

16.12. **Assignment**

16.12.1. The Borrower(s) is not entitled to assign or transfer any of the rights under the Facility Documents to any person without the prior written consent of the Lender. The Lender shall be entitled to grant, transfer or assign any or all of its rights, benefits, obligations, duties and liabilities under the Facility Documents,

including the rights to receive Instalments and loan balance by way of sale, transfer, securitization, charge or security or otherwise to any person or entity and in the event of such assignment by the Lender the Borrower(s) shall perform his/her/their obligations under the Facility Documents to such assignee.

16.12.2. The provisions of the Facility Documents shall remain binding on the Borrower(s) notwithstanding any amalgamation, merger or reverse merger that may be effected by the Lender with any other company or companies and notwithstanding any reconstruction by the Lender involving/by the formation of and transfer of, all or any of the Lender's assets to a new company or an existing company and notwithstanding the sale of all or any part of the Lender's undertaking and assets to another company with the intent that the undertakings and agreement herein contained shall remain valid and effectual in all respects, and the benefit hereof and all rights hereby conferred upon the Lender may be assigned to and enforced by any such company or companies as if such company or companies had been named herein instead of the Lender and the terms and conditions of the Facility Documents shall apply to all facilities and other accommodation extended to the Borrower(s) by any amalgamated company as aforesaid or the Lender as reconstructed or any company to which the Lender shall have sold all the Lender's undertaking and assets in like manner as if such amalgamated company or the Lender as reconstructed or such company were named herein instead of the Lender.

16.12.3. The Borrower(s) undertakes to execute all such instruments or documents and do all such acts or deeds (at the Borrower's own cost) as may be required by the Lender in connection with any assignment, transfer, novation, merger or change referred to in this Clause 16.12.

16.13. **Signatures**

16.13.1. The Parties agree that the Facility Documents will be entered into and executed by way of any of the following: (i) clicking the accept/agree button, (ii) electronic signature, (iii) Aadhar signature, (iv) one-time-password verification, (v) exchange of email or messages (including SMS and WhatsApp), (vi) physical execution or (vii) any other mode of execution acceptable to the Lender as communicated to the Borrower(s), from time to time.

16.13.2. The Borrower(s) agrees that any instructions, communications and documents digitally or electronically executed, signed or issued will have the same validity, admissibility and enforceability as if signed physically by the Borrower(s).

16.13.3. The Lender does not and will not accept any liability in any case where it fails to notice a falsification, forgery or other defect in any instruction given via response to a dashboard notification or e-mail, authentication or legal capacity.

16.14. **Relationship between the Parties**

16.14.1. Each Party is acting in its capacity as principal. Nothing contained in the Facility Documents constitute a partnership or joint venture between the Parties in respect of the matters concerning the Facility Documents.

16.14.2. The Lender does not provide, and the Borrower(s) agrees and acknowledges that the Lender has not provided, tax advice or opinion on any transaction nor on the tax risks of any transaction. The Borrower(s) must obtain, at its own risk as to cost and consequences, advice, including (where appropriate) from an independent tax adviser, to enable the Borrower(s) to satisfy itself as to the tax implications of any transaction, especially those that are tailored to the Borrower's particular circumstances.

16.15. **Acknowledgment by the Borrower**

The Borrower unconditionally and irrevocably acknowledge that: (a) the Lender shall not be liable or responsible, in any manner whatsoever for any claims or disputes that the Borrower may have with the insurance company and/or its agents/partners/group administrator in relation to selling or marketing of any insurance products on the Service Platform for which the Borrower has consented and authorized the Lender to deduct Insurance Payment charges from the Sanctioned Credit Facility and make payment of the same to the insurance company and/or its agents/partners/group administrator, on behalf of the Borrower(s) and such claims or disputes of the Borrower shall lie exclusively against such insurance company and/or its agents/partners/group administrator, and/or (b) where the Sanctioned Credit Facility is insured by such insurance products, the Lender shall not be liable or responsible, in any manner whatsoever, for any claims or disputes that the Borrower may have with the insurance company and/or its agents/partners/group administrator and such claims or disputes of the Borrower shall lie exclusively against the

insurance company and/or its agents/partners/group administrator. The existence of any claim or dispute as set out above shall not relieve the Borrower of his/her obligations to pay all Outstanding and other amounts on the applicable Due Dates and the Borrower agree to continue paying such Outstanding and other amounts notwithstanding any such claims or disputes.

16.16. The Facility Documents constitute the entire agreement between the Borrower and the Lender with respect to the Sanctioned Credit Facility with effect from the date of acceptance and execution of the Facility Documents by the Borrower ("**Effective Date**") and supersede all previous agreements, sanction letters, understandings, documents and/or other written agreements entered into between the Borrower and the Lender in relation to Sanctioned Credit Facility.

16.17. Consent of the Borrower:

The Borrower further irrevocably and unconditionally agrees and consents to the Lender as follows:

(i) The Borrower shall ensure that the internal/statutory auditors of the Borrower shall submit to the Lender, as and when required by the Lender, a certificate certifying that there has been no diversion/siphoning of funds sanctioned to the Borrower on a half yearly basis.

(ii) The Borrower hereby gives consent to the Lender to appoint an auditor acceptable to the Lender for the purpose of verifying diversion/siphoning of the Facility sanctioned by the Lender.

(iii) The Borrower hereby gives consent to the Lender to commission a forensic audit of affairs of the Borrower and his/her/its/their book of accounts, if required by the Lender.

17. SPECIFIC MEASURES AGAINST WILFUL DEFAULTER

17.1. The Borrower(s) irrevocably and unconditionally acknowledge confirms and understands that in case the Borrower(s) himself or herself is declared as a wilful defaulter by the Lender or any scheduled commercial bank, financial institution, the RBI or any other governmental authority, then the Lender is entitled to take all or any of the following measures in accordance with RBI circulars/directions issued on treatment of wilful defaulters and the Lender's policy and procedures, from time to time (to the extent applicable):

17.2. Initiate criminal proceeding against the wilful defaulter.

17.3. Publishing of photographs of the wilful defaulter.

17.4. No additional credit facility shall be granted by Lender to a wilful defaulter or any entity with which a wilful defaulter is associated.

17.5. The bar on additional credit facility to the wilful defaulter or any entity with which a wilful defaulter is associated shall be effective for a period of one (1) year after the name of wilful defaulter has been removed from the list of wilful defaulters (LWD) by the Lender.

17.6. No credit facility shall be granted by the Lender for floating of new ventures to the wilful defaulter or any entity with which the wilful defaulter is associated for a period of five (5) years after the name of wilful defaulter has been removed from the LWD by the Lender.

17.7. Wilful defaulters or any entity with which a wilful defaulter is associated shall not be eligible for restructuring of Facility. Subsequent to removal of the name of wilful defaulter from the LWD, the wilful defaulter or any entity with which a wilful defaulter is associated shall be eligible for restructuring, subject to the provision contained in Clause 17.5 above.

17.8. Any other action as may be permitted by RBI/governmental authorities or in accordance with Lender's policies and procedures.

17.9. The Borrower(s) understands and acknowledges that under no circumstances shall the Lender renew/ enhance/ provide fresh credit facilities or restructure existing Facility provided to the Borrower(s) so long as the name of the Borrower remains in the list of wilful defaulters.

Name of the Borrower

(Signature)

Name of the Co- Borrower

(Signature)

For PayU Finance India Private Limited

Authorized Signatory

(Signature)

Name of the Borrower KOGANTI SRINIVASA RAO

(Signature) Signed by Koganti Srinivasa Rao Using OTP on 29/09/2025 through IP address 27.59.63.163

Name of the Co-Borrower Not Applicable

(Signature) Not Applicable

For PayU Finance India Private Limited

Authorised Signatory:

HYPERVERGE

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Date Of Birth	15-08-1974		
Gender	M	c/o	C/O: B Somasekhara Srinivasulu
Address	C/O: B Somasekhara Srinivasulu, 87/1101-2-H-1, GANESH NAGAR REVENUE WARD 87,Kurnool, Knl-camp-b,Kurnool Urban Kurnool,Andhra Pradesh,518002		
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Digitally signed e-Aadhaar XML


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Key Facts Statement (KFS)
Please read carefully before confirming your acceptance
(Final)

Date: 29 / 09 / 2025

This is with reference to the Application Form submitted by the Borrower(s) for availing the personal loan facility (Credit Facility) from PayU Finance India Private Limited (as the Lender). Please find below the key facts statement applicable to the Credit Facility:

Sr No	Particulars	Details
(i)	Customer/Borrower(s) identification number	24425557
(ii)	Name of the Borrower	KOGANTI SRINIVASA RAO
(iii)	Current address of the Borrower	87/1101-2-H-1 GANESH NAGAR REVENUE WARD 87 Kurnool, Knl-camp-b Kurnool Urban Kurnool Andhra Pradesh 518002 NEAR SRI RAMACHANDRA
(iv)	Communication address of the Borrower	87/1101-2-H-1, GANESH NAGAR REVENUE WARD 87,Kurnool, Knl-camp-b,Kurnool Urban Kurnool,Andhra Pradesh 518002 NEAR SRI
(v)	PAN	AYJPK0678F

Part 1
(Interest rate and fees/charges)

1	**Loan/Credit Facility proposal/account No.**	PFBJSC33000016661522	**Type of Loan/ Credit Facility**	Personal loan to be utilized for the Purpose specified in Serial No. 1 of Part 3 of this KFS.
2	**Sanctioned Loan/Credit Facility amount (in Rupees)**	INR. 444180.00		

3	**Disbursal schedule** (i) Disbursement in stages or 100% upfront (ii) If it is stage wise, mention the clause of loan agreement having relevant details	100% upfront in accordance with the remittance mechanism specified in Serial No. 2 of Part 3 of this KFS.
4	**Loan/Credit Facility term (year/month/days)**	Overall tenure: 30 months.

5	**Instalment details:** The Sanctioned Credit Facility shall be repaid in 30 number of monthly instalment payable on the 3 day of each calendar month. Kindly note the first Installment will also include the per day Cycle Adjustment Interest equivalent to INR. 328.57 which will be levied each day and will be paid along with the Instalment falling due on the first Due Date. [For illustration purpose: if a disbursal under the credit facility is made on 15th of October, and the due date of each instalment is 05th day of each calendar month during the tenure of the credit facility, then, the first due date of the instalment will be 05th December.] **Cycle Adjustment Interest** in this case will be computed from 15th October till 04th of November and will be paid along with the installment falling due on the first due date that is, on 05th December. For further details, please refer to the Repayment Schedule as specified below.			
	Type of Instalments	**Number of EPIs**	**EPI (in INR)**	**Commencement of repayment, post sanction**
	Monthly	30	20,521.00	>= 30 days
6	**Interest rate (%) and type (fixed or floating or hybrid)**		**Fixed interest rate, that is, 27.00% % per annum. This is the annualized rate of interest.** **It is being clarified and informed to the Borrower(s) that in the event payment of the Instalment is not received by the Lender on the respective Due Date, the Interest shall continue to accrue on the principal overdue amount under the respective Instalment for the period beginning from the relevant Due Date for such repayment/payment till the payment is actually made in full to the Lender.**	

7	**Additional Information in case of Floating rate of interest**	Not Applicable			
8	**Fee/Charges**				
		Payable to the Lender (A)		**Payable to third party/lending service provider through the Lender (B)**	
		One-time/Recurring	**Amount (in INR) or Percentage (%) as applicable**	**One-time/Recurring**	**Amount (in INR) or Percentage (%) as applicable**
(i)	**Processing fees**	**The Borrower(s) shall pay a onetime processing fee in relation to the utilization/drawdown under the Sanctioned Credit Facility.**	**INR. 15,546.30 +Applicable GST of INR. {{ kfs.processing_fee_gst}}**	Not applicable	Not applicable
(ii)	**Insurance Charges**	Not applicable	Not applicable	**The Borrower(s) shall pay a one-time insurance related payment charges**	**INR. 5,180.00 +Applicable GST of INR. {{ kfs.insurance_gst_amount }}**
(iii)	**Valuation fees**	Not applicable	Not applicable	Not applicable	Not applicable
(iv)	**Any other (please specify**	Not applicable	Not applicable	Not applicable	Not applicable
9	**Annual Percentage Rate (APR) (in percentage)**		**30.55** **The detailed breakup of APR is more particularly detailed under Part 2 of the KSF.**		
10	**Details of Contingent Charges (in INR or percentage as applicable)**				
(i)	**Penal charges, if any, in case of delayed payment**		**INR. [NIL]**		
(ii)	Other penal charges if any		Not applicable		
(iii)	**Foreclosure charges, if applicable**		**After the Cooling-Off Period, if the Borrower(s) intends to foreclose the**		

Sanctioned Credit Facility for any reasons whatsoever, then the following foreclosure charges shall be required to be paid by the Borrower(s) for foreclosing the Sanctioned Credit Facility. The applicable foreclosure charges mentioned below shall be in addition to the Outstanding under the Sanctioned Credit Facility.

Time-period for foreclosure	Foreclosure charges
If the Borrower(s) intends to foreclose the Sanctioned Credit Facility within a period of 6 months from the date of disbursement of the Sanctioned Credit Facility.	Not exceeding 8% of the outstanding amount under the Sanctioned Credit Facility plus applicable GST.
If the Borrower(s) intends to foreclose the Sanctioned Credit Facility anytime between the 7th month till the 12th month, from the date of disbursement of the Sanctioned Credit Facility.	Not exceeding 7% of the outstanding amount under the Sanctioned Credit Facility plus applicable GST.
If the Borrower(s) intends to foreclose the Sanctioned Credit Facility anytime between the 13th month till the 24th month, from the date of disbursement of the Sanctioned Credit Facility.	Not exceeding 6% of the outstanding amount under the Sanctioned Credit Facility plus applicable GST.
If the Borrower(s) intends to foreclose the Sanctioned Credit Facility any time after the 25th month, from the date of disbursement of the Sanctioned Credit Facility.	Not exceeding 5% of the outstanding amount under the Sanctioned Credit Facility plus applicable GST.

The Borrower(s) agrees and acknowledges that the foreclosure charges as specified above are subject to change from time to time at the discretion of the Lender. Any such change in the foreclosure charges shall be intimated to the Borrower, at least 15 days prior to implementing such change. The Borrower(s) shall have an option to foreclose the Sanctioned Credit Facility (by paying the existing foreclosure charges in addition to Outstanding under the Sanctioned Credit Facility) within a period of 30 days from the end of 15 days (as mentioned above) in case such change is not acceptable to the Borrower. However, the Borrower(s) shall be required to communicate his/her decision to the Lender in this regard at any time prior to such change taking effect. Any foreclosure of the Sanctioned Credit

		Facility thereafter shall be subject to the applicable changed/revised foreclosure charges.
(iv)	**Charges for switching of loans from floating to fixed rate and vice versa.**	Not applicable
(v)	**Any other charges (please specify).**	If the Borrower(s) has enabled an auto debit facility for any amounts payable by the Borrower(s) under the Facility Documents and any such auto debit request is declined for any reason, then bounce charges upto INR 500.00 will be levied for each such instance dishonor of NACH/e-mandate.

Explanation of some key terms:

- **Annual Percentage Rate (APR) as specified in the above table, is the annual cost of credit to the Borrower(s) which includes interest rate and all other charges associated with the credit facility.**
- **Equated Periodic Instalment (EPI) as specified in the above table, is an equated or fixed amount of repayments, consisting of both the principal and interest components, to be paid by the Borrower(s) towards repayment of a loan at periodic intervals for a fixed number of such intervals; and which result in complete amortisation of the loan. EPIs at monthly intervals are called EMIs.**

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Part 2
(Other qualitative information)

1	Clause of Credit Facility Agreement relating to engagement of recovery agents.	Serial No. 18 of Most Important Terms and Condition **(MITCs)** (MITCs form an integral part of the Credit Facility Agreement)	
2	Clause of Credit Facility Agreement which details grievance redressal mechanism.	Serial No. 19 of MITCs (MITCs form an integral part of the Credit Facility Agreement)	
3	Phone number and email id of the nodal/ grievance redressal officer.	Email-1: support@gopaysense.com Email-2: grievanceredressalofficer@payufin.com Phone number – 022 6982 1144 (Monday to Friday between 10AM–7PM) Email-3: nodalofficer@payufin.com Phone number: 022 6982 1177 (Monday to Friday between 10AM–7PM)	
4	Whether the loan/Credit Facility is, or in future maybe, subject to transfer to other regulated entities **(REs)** or securitisation (Yes/ No).	Yes	
5	In case of lending under collaborative lending arrangements (e.g., co-lending/ outsourcing), following additional details may be furnished:	Not applicable	
Name of the originating RE, along with its funding proportion		Name of the partner RE along with its proportion of funding	Blended rate of interest
PayU Finance India Private Limited shall be 100% funding the Sanctioned Credit Facility		Not applicable	Not applicable
6	In case of digital loans, following specific disclosures may be furnished.		

(i) Cooling off/look-up period, in terms of Lender's board approved policy, during which Borrower(s) shall not be charged any penalty on prepayment of loan.	3 (three) days from the date of disbursement under the Sanctioned Credit Facility. During the aforesaid Cooling Off Period, the Borrower(s) may decide not to continue with the Sanctioned Credit Facility, without being liable to pay any prepayment/foreclosure charges. However, the Borrower(s) shall be liable to pay the outstanding principal amount under the Sanctioned Credit Facility and the proportionate Annual Percentage Rate (as specified in this KFS). Upon such payment by the Borrower, the Sanctioned Credit Facility shall cease to be available, and the Facility Documents shall stand terminated.
(ii) Details of lending service provider (LSP) acting as recovery agent and authorized to approach the Borrower.	In case the Borrower(s) defaults on repayment of the Credit Facility (including Outstanding), the Lender may, either on its own or through other service providers (including its/their agents), undertake collection or recovery from the Borrower. For details of service providers and/or its/their agents. Please refer to https://www.payufin.in and https://www.payufin.in/dlp-details/paysense Recovery Partner: Name: Paysense Services India Private Limited Address: Empresa Building, Fourth Floor, Second Road, Khar West, Mumbai, Maharashtra, 400 052, India Website: https://www.gopaysense.com The Lender shall also be reporting defaults of the Borrower(s) with credit information companies. Further, the Lender shall have the right to replace the Recovery Partner and other collection agents from time to time at their sole discretion. In case of change of the Recovery Partner or any other collection agent, the Lender shall duly inform the Borrower(s) the details of new collection agent/recovery partner.

Computation of APR

Sr. No.	Parameter	Details
1	Sanctioned loan/Credit Facility amount (in Rupees)	444180.00
2	Loan/Sanctioned Credit Facility Term (in years/ months/ days)	30
(a)	No. of instalments for payment of principal, in case of non-equated periodic loans	NA
(b)	Type of EPI Amount of each EPI (in Rupees) and nos. of EPIs (e.g., no. of EMIs in case of monthly instalments)	INR. 20,521.00 per EPI Number of EPIs: 30
(c)	No. of instalments for payment of capitalised interest, if any	NA
(d)	Commencement of repayments, post sanction	>= 30 Days
3	**Interest rate type (fixed or floating or hybrid)**	**Fixed**

4	**Rate of Interest**	**27.00%%**
5	**Total Interest Amount to be charged during the entire tenor of the loan/Sanctioned Credit Facility as per the rate prevailing on sanction date (in Rupees)**	**1,71,463.0**
A	**Cycle Adjustment Interest (in Rupees)**	**615643.00**
6	**Fee/ Charges payable (in Rupees)**	**24,314.83**
A	**Payable to the Lender**	**615643.00**
B	**Payable to third-party routed through RE**	**Not Applicable**
7	Net disbursed amount (1-6) (in Rupees)	4,20,655.37
8	**Total amount to be paid by the Borrower(s) (sum of 1 and 5) (in Rupees)**	**615643.00**
9	**Annual Percentage Rate- Effective annualized interest rate (in percentage)**	**30.55%**
10	Schedule of disbursement as per terms and conditions	100%
11	Due date of payment of instalment and interest	3 day of each month during the tenure of the Credit Facility

Repayment Schedule under Equated Periodic Instalment:

Instalment No.	Outstanding Principal (in Rupees)	Principal (in Rupees)	Interest (in Rupees)	Instalment (in Rupees)
1	444180.00	10526	9995.0	20521.00
2	433654.00	10763	9758.0	20521.00
3	422891.00	11005	9516.0	20521.00
4	411886.00	11253	9268.0	20521.00
5	400633.00	11506	9015.0	20521.00
6	389127.00	11765	8756.0	20521.00
7	377362.00	12030	8491.0	20521.00
8	365332.00	12301	8220.0	20521.00
9	353031.00	12577	7944.0	20521.00
10	340454.00	12860	7661.0	20521.00

11	327594.00	13150	7371.0	20521.00
12	314444.00	13446	7075.0	20521.00
13	300998.00	13748	6773.0	20521.00
14	287250.00	14057	6464.0	20521.00
15	273193.00	14374	6147.0	20521.00
16	258819.00	14697	5824.0	20521.00
17	244122.00	15028	5493.0	20521.00
18	229094.00	15366	5155.0	20521.00
19	213728.00	15712	4809.0	20521.00
20	198016.00	16065	4456.0	20521.00
21	181951.00	16427	4094.0	20521.00
22	165524.00	16796	3725.0	20521.00
23	148728.00	17174	3347.0	20521.00
24	131554.00	17561	2960.0	20521.00
25	113993.00	17956	2565.0	20521.00
26	96037.00	18360	2161.0	20521.00
27	77677.00	18773	1748.0	20521.00
28	58904.00	19195	1326.0	20521.00
29	39709.00	19627	894.0	20521.00
30	20082.00	20082	452.0	20534.00

Important Notes:

(a) In the event there is any delay in the payment of any Instalment and/or any other amount payable by the Borrower(s) to the Lender pursuant to the Facility Documents, the Interest shall continue to accrue on the principal overdue amount under the respective Instalment for the period beginning from the relevant Due Date for such repayment/payment till the payment is actually made in full to the Lender.

(b) Cycle Adjustment Interest equivalent to INR. 328.57 per day will be added to first Instalment and will be required to be paid by the

Borrower(s) along with the Instalment falling due on the first Due Date.

PayU Finance India Private Limited

Registered Office
Wallace Towers, Second Floor,
Crossing of Sahar Road, Vile Parle
East, Mumbai, Maharashtra,
400 057 India
Telephone: 022-26000868

Corporate Office
9th Floor, Bestech Business Tower,
Sohna Road, Sector-48,
Gurgaon, Haryana,
122 002 India
Telephone: 0124-6624800/900

Kolkata Branch
Awfis - Siddha Esplanade,
3rd floor, 6 Jawaharlal Nehru Road,
Kolkata, West Bengal,
700 013 India
Telephone: ---

CIN: U65910MH1992PTC068664

Email: info@payufin.com

Website: www.payufin.com

Part 3

Important terms and conditions applicable to the Sanctioned Credit Facility

Sr No.	Parameter	Details
1	**Purpose**	To utilize the amounts drawn down under the Sanctioned Credit Facility as a personal loan.
2	**Remittance/ deduction out of the Sanctioned Credit Facility by the Lender**	The Lender shall directly remit the amounts under the Sanctioned Credit Facility towards personal loan by transferring the same to the Borrower(s)' Bank Account. Further, all or any portion of the Sanctioned Credit Facility may be transferred to the Borrower(s)'s Bank Account in lump sum. The Lender shall also be deducting: (a) a one-time processing fees and (b) amounts for making payment to any insurance company towards insurance related charges/payment under the group insurance policy purchased by the Borrower(s) **(Insurance Payment)**, from the Sanction Credit Facility as specified in Part 1 of this KFS.
3	**Taxes and Levies**	All the charges indicated in the Facility Documents shall be exclusive of all taxes and statutory levies as may be applicable on the same including, without limitation, **GST at the rate of 18% (or any other rate that may be specified by the relevant Governmental Authority in this regard from time to time) together with any cess, and such taxes and statutory levies** shall be payable by the Borrower(s) as specified in the Facility Documents.
4	**Details of Lender**	Name: PayU Finance India Private Limited Registered office address: Wallace Towers, Second Floor, Crossing of Sahar Road, Vile Parle East, Mumbai, Maharashtra, 400 057, India Corporate office address: 9th Floor, Bestech Business Tower, Sector 48, Sohna Road, Gurugram, Haryana – 122002, India. Branch office address: (a) Unit bearing no. 214, 1st Floor, DLF South Court Mall, Saket, New Delhi 110017 and (b) Awfis – Siddha Esplanade, 3rd floor, 6 Jawaharlal Nehru Road, Kolkata, West Bengal - 700013. Website: www.payufin.in Privacy policy: Available at www.payufin.in/privacy-policy

5	**Insurance Payment acknowledgment by the Borrower**	The Borrower(s) unconditionally and irrevocably acknowledge that: (a) the Lender shall not be liable or responsible, in any manner whatsoever for any claims or disputes that the Borrower(s) may have with the insurance company and/or its agents/partners/group administrator in relation to selling or marketing of any insurance products on the digital lending partner/referral partner platforms for which the Borrower(s) has consented and authorized the Lender to deduct Insurance Payment charges from the Sanctioned Credit Facility and make payment of the same to the insurance company and/or its agents/partners/group administrator on behalf of the Borrower(s) and such claims or disputes of the Borrower(s) shall lie exclusively against such insurance company and/or its agents/partners/group administrator, and/or (b) where the Sanctioned Credit Facility is insured by such insurance products, the Lender shall not be liable or responsible, in any manner whatsoever, for any claims or disputes that the Borrower(s) may have with the insurance company and/or its agents/partners/group administrator and such claims or disputes of the Borrower(s) shall lie exclusively against the insurance company and/or its agents/partners/group administrator. The existence of any claim or dispute as set out above shall not relieve the Borrower(s) of his/her obligations to pay all outstanding and other amounts on the applicable Due Dates and the Borrower(s) agree to continue paying such outstanding and other amounts notwithstanding any such claims or disputes.
6	**Interest Rate Policy**	The interest rate policy of the Lender is available on the website https://www.payufin.in. The Lender shall declare and display the rate of interest (including any revisions in the rate of interest) on its website and the same shall be deemed to be a notice to the Borrower. The Borrower(s) hereby agree that it shall be the duty of the Borrower(s) to keep himself or herself updated of any such changes or variations in the rate of interest by visiting the website of the Lender as specified above. The Lender may also, but shall not be obligated to, notify the Borrower(s) of any change in the rate of interest. Such a revised rate of interest shall be applicable prospectively.
7	**Foreclosure criteria**	(a) After the Cooling-Off Period, a 15 (fifteen) days prior notice from the Borrower(s) to the Lender will be required for any foreclosure subject to payment of applicable foreclosure charges, and (b) Only foreclosure/prepayment of full Outstanding amount under the sanctioned credit facility is permitted.

8	**Terms and Conditions of Recovery Mechanism**	The Borrower(s) shall be required to pay the Instalments (including any Outstanding amounts) under the Credit Facility in full, by no later than the Due Date. If the Borrower(s) fails to pay the Instalments (including any Outstanding amounts) under the Credit Facility in full by the applicable Due Date, then the Lender may, at its sole discretion, (i) utilize the Payment Instruction(s) or post-dated cheque(s)available with the Lender for recovering the Outstanding; and (ii) declare an Event of Default under the Facility Documents, in which case the Lender may choose to exercise any or all of the rights available to it under Applicable Laws and the Facility Documents including, but not limited to, the clause providing for Consequences of Events of Default as mentioned in the General Terms and Conditions) . Further, the Lender shall be classifying and/or reporting the Borrower's loan account as a stressed loan account in accordance with Applicable Laws. In this regard, the Borrower(s) must note the following illustrations: (i) If the Due Date for repayment of an Instalment is March 31st and the Borrower(s) fails to pay the relevant Instalment amount on such date in full before the closure of the day-end process, the loan account of the Borrower(s) shall be classified and reported as overdue with effect from March 31st. (ii) If the aforesaid Instalment amount continues to remain overdue for a period of 30 days from the Due Date, that is, the Borrower(s) fails to pay the relevant Instalment amount in full before the closure of the day-end process on the 30th day from the Due Date, the loan account of the Borrower(s) shall be classified and reported as a special mention account-1 **(SMA-1)** on April 30th. (iii) If the aforesaid Instalment amount continues to remain overdue for a period of 60 days from the Due Date, that is, the Borrower(s) fails to pay the relevant Instalment amount in full before the closure of the day-end process on the 60th day from the Due Date, the loan account of the Borrower(s) shall be classified and reported as a special mention account-2 **(SMA-2)** on May 30th. (iv) If the aforesaid Instalment amount continues to remain overdue for a period of 90 days from the Due Date, that is, the Borrower(s) fails to pay the relevant Instalment amount in full before the closure of the day-end process on the 90th day from the Due Date, the loan account of the Borrower(s) shall be classified and reported as a non-performing asset **(NPA)** on June 29th. (v) A loan account that has been classified as NPAs by the Lender may be upgraded as **standard** asset only if entire arrears of Instalment s are paid by the Borrower(s) to the Lender. **[Note: Illustrations provided above are only indicative of the classification and reporting practices that will be followed by the Lender and do not dilute the liability of the Borrower(s) to pay the entire Outstanding.]** For undertaking collection and recovery the Lender may, either on its own or through the Service Provider (including its agents etc.), undertake collection or recovery from the Borrower. For details of Service Provider and its agents etc. please refer to www.payufin.com and https://www.payufin.in/dlp-details/paysense. The Lender shall also be reporting defaults of the Borrower(s) with credit information companies.

9	**Confirmation from the Borrower**	The Borrower confirms that he/she understands English and shall carefully read and understand the terms and conditions of this KFS along with other Facility Documents before accepting and executing the Facility Documents. Further, the Borrower confirms that he/she has accepted to receive all future correspondence about the Facility (including the Facility Documents) and any other correspondences from PayU Finance India Private Limited in English language.

All capitalized terms used but not specifically defined in this Key Facts Statement shall have the respective meanings ascribed to them in the Facility Documents.

Yours faithfully,
For **PayU Finance India Private Limited:**
Authorized Signatory